

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

STEPHEN GRANT RUSSELL,
Plaintiff,

-against-

TOWN OF NEW CASTLE,
DONNA M. GENOVESE, ESQ., individually,
FAITH MILLER, ESQ., individually,
JENNIFER JACKMAN, ESQ., individually,
TARA KATELYN WALSH, individually,
STEPHEN WALSH, SR., individually,
and
MAURA WALSH, individually,
Defendants.

:
:
: Civil Action No. _____
:
: **VERIFIED COMPLAINT**
:
: **JURY TRIAL DEMANDED**
:

NATURE OF THE ACTION

1. This is not a custody dispute. It is a civil rights action brought pursuant to 42 U.S.C. § 1983 and supplemental state law arising from a coordinated campaign by private individuals and court-appointed officers to fabricate, suppress, and maintain a false evidentiary record that produced a custody order, a speech-restriction order, a financial enforcement regime, and the systematic destruction of the father's legal representation — all in a proceeding the Appellate Division later held was not conducted on default.
2. The conspiracy operated through three mechanisms: (a) the fabrication and ratification of false police reports by the Town of New Castle police department, which received the complainant's own recantation and took no corrective action (Ricciuti); (b) the non-advocacy conduct of three successive Attorneys for the Child who suppressed exculpatory evidence, embedded a fraudulently credentialed evaluation as a gating condition for parental access, and procured a speech-restriction order later found to

contain a provision that was not narrowly tailored (*Tower v. Glover*); and (c) the coordinated private conduct of the Walsh family, who conspired with state actors to invoke state power against the father through fabricated allegations, witness intimidation, and obstruction of discovery (*Dennis v. Sparks*).

3. Plaintiff does not ask this Court to adjudicate custody, modify any state court order, or revisit the Appellate Division's modification and affirmance. The injury is the fabrication, the retaliatory suppression, and the conditions under which custody restrictions and related harms were perpetuated. Plaintiff seeks compensatory and punitive damages, declaratory relief, and costs.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction under 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) and (4) (civil rights).
5. Supplemental jurisdiction over the state law claims exists under 28 U.S.C. § 1367(a). The state claims arise from a common nucleus of operative fact with the federal claims.
6. Venue is proper in this District under 28 U.S.C. § 1391(b)(2). The events giving rise to this action occurred in Westchester County, New York, which is within the Southern District of New York.
7. This action is not barred by the Rooker-Feldman doctrine. Plaintiff challenges independent constitutional injuries inflicted through the conspiracy, not the state court custody determination itself.
8. The domestic relations exception does not apply. This action does not seek to adjudicate, modify, or enforce any custody, visitation, or support order.

PARTIES

9. **Plaintiff Stephen Grant Russell** is a citizen of the State of California, residing in Santa Barbara, California. He is the father of the minor child [E.V.], born in 2015, who is the subject of the custody proceedings at issue. He appears *pro se*.
10. **Defendant Town of New Castle** is a municipal corporation organized under the laws of the State of New York, responsible for the operation of the New Castle Police Department. It is sued under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), for a policy or custom of maintaining one-sided investigative records that suppress exculpatory evidence and ratify fabricated allegations.
11. **Defendant Donna M. Genovese, Esq.** served as the third Attorney for the Child (“AFC”) in the underlying proceedings. She is sued in her individual capacity for non-advocacy conduct — including the procurement of a speech-restriction order, participation-denial misrepresentations, and ex parte coordination — that exceeded the scope of her quasi-judicial function. *Tower v. Glover*, 467 U.S. 914 (1984).
12. **Defendant Faith Miller, Esq.** served as the first AFC in the underlying proceedings, appointed by Judge Sandra A. Gordon-Oliver. She is sued in her individual capacity for participation in a scheme to place her own law partner as her replacement AFC, rather than withdrawing transparently when a conflict arose. *Dennis v. Sparks*, 449 U.S. 24 (1980).
13. **Defendant Jennifer Jackman, Esq.** served as the second AFC in the underlying proceedings. She is a partner at the same firm as Miller — Miller Zeiderman & Wiederkehr LLP. She is sued in her individual capacity for embedding a fraudulently credentialed forensic evaluation as the gating condition for removing supervised

visitation, and for deflecting scrutiny of that evaluation. *Dennis v. Sparks*, 449 U.S. 24 (1980).

14. **Defendant Tara Katelyn Walsh** is the biological mother of [E.V.] and a private individual who conspired with state actors to invoke state power against Plaintiff through fabricated allegations, covert drugging, and extortion. *Dennis v. Sparks*, 449 U.S. 24 (1980).

15. **Defendant Stephen Walsh, Sr.** is the maternal grandfather of [E.V.] and a private individual who conspired with state actors through coordination of the fraudulent interstate removal, threats against Plaintiff's attorneys, obstruction of discovery, and witness intimidation. *Dennis v. Sparks*, 449 U.S. 24 (1980).

16. **Defendant Maura Walsh** is the maternal grandmother of [E.V.] and a private individual who conspired with state actors through coordinated deposition testimony, fabrication of medical symptoms in the child, and participation in the joint plan to maintain the false evidentiary record. *Dennis v. Sparks*, 449 U.S. 24 (1980).

FACTUAL ALLEGATIONS

I. The Underlying Proceedings and the Appellate Division's Holding

17. In July 2018, Walsh commenced a proceeding in the Westchester County Family Court seeking sole legal and physical custody of [E.V.] (File No. V-7641-18). A family offense proceeding followed (File No. O-12635-19).

18. On November 5, 2021, Judge Michelle I. Schauer held a scheduled hearing. Plaintiff did not appear in person. The court found Plaintiff in default. The resulting order, dated December 3, 2021, bears the title "ORDER ON DEFAULT" on its face. (Exhibit 1.)

19. On January 5, 2022, the Family Court held an inquest. Plaintiff was not personally present, but his attorney, Jason Andrew Advocate, Esq., was present and actively participated throughout — conducting cross-examination, making legal arguments, and raising objections over the course of a 99-page transcript. (Exhibit 2.) Despite this participation, the court declared the proceeding a default. AFC Genovese stated: “There’s no cross petition, there’s no participation by Mr. Russell.” (Exhibit 2, p. 91, ll. 3–10.) This statement was made while Plaintiff’s attorney sat at counsel table, having just conducted cross-examination.
20. In *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d Dep’t 2023), the Appellate Division held that the order appealed from was not entered upon the father’s default, because although the father failed to appear in person at the hearing, his counsel appeared on his behalf and participated in the hearing. The court modified the order, on the law, by deleting the provision directing the father to erase, deactivate, and delete “any existing blogs and likenesses,” and substituting therefor a narrower provision. As so modified, the order was affirmed insofar as appealed from. (Exhibit 3.)

II. The AFC Chain: Miller to Jackman to Genovese

21. Between 2018 and 2022, three successive Attorneys for the Child were appointed in this proceeding. The sequence of their appointments, and the conduct of each, establishes the infrastructure through which exculpatory evidence was suppressed and the false record was maintained.
22. **Miller (First AFC).** Defendant Miller was appointed by Judge Gordon-Oliver at a rate of \$650 per hour. Upon discovering a conflict, Miller did not withdraw transparently.

Instead, on information and belief, she arranged for her own law partner — Defendant Jackman — to be appointed as her replacement.

23. **Jackman (Second AFC).** Defendant Jackman is a partner at Miller Zeiderman & Wiederkehr LLP — the same firm as Miller. This partnership is established by the firm name, letterhead, email domain (jmj@mzw-law.com), the Turnure letter, and the Guttridge CC line. The appointment of a law partner to replace a conflicted AFC violated New York Rules of Professional Conduct 1.10 (imputed disqualification). Jackman billed \$46,920 for 111.8 hours.
24. Jackman made the forensic evaluation conducted by P. Raymond Griffin, CASAC #1636, the gating condition for removing Plaintiff’s supervised visitation. When Plaintiff challenged this, asking Jackman “on what basis you were making Griffin’s report a condition of stopping supervision, when you know Tara has recounted her accusations,” Jackman deflected: “I did not say that Dr. Griffin did anything improper.” (Exhibit 4.)
25. On August 19, 2019, Griffin’s OASAS CASAC credential #1636 was revoked for nine violations, including grossly negligent handling of toxicology testing and unauthorized practice of medicine. Griffin surrendered the credential and waived hearing. (Exhibit 5.) Jackman had embedded the evaluation as the gating condition four months before the revocation; the condition remained in effect for years after.
26. **Genovese (Third AFC).** Defendant Genovese filed the October 14, 2021 Order to Show Cause seeking to prohibit Plaintiff from posting blogs and displaying likenesses of the child, and directing Plaintiff to erase, deactivate, and delete all existing postings — a blanket deletion provision the Appellate Division later struck as not narrowly tailored. Genovese stated on the record on January 5, 2022 that there was “no participation by Mr.

Russell“ while Plaintiff’s attorney sat at counsel table having just conducted cross-examination.

27. Genovese subsequently filed a 241-page appellate brief defending the default characterization and the orders entered under it. In January 2026, Genovese resigned from the case via an ex parte letter through Court Attorney Michele D’Ambrosio, and was subsequently appointed as a Court Attorney at Bronx Supreme Court within the Unified Court System.

III. The Five Witness Breaks

28. The false record maintained by Defendants was contradicted repeatedly — by their own witnesses, their own family members, and their own sworn testimony. Each break was available to Defendants. None produced corrective action.

A. Walsh Sr.: The Coordinator’s Own Admissions

29. During his April 26, 2021 deposition, Defendant Walsh Sr. made the following sworn admissions:

(a) He described his own conduct as “less than 100 percent genuine“ — a sworn admission of deception. (Exhibit 6.)

(b) He used coordination language establishing a joint plan: references to “stick to the original plan/agreement“ and “commit to staying with us.“ (Exhibit 6.)

(c) He refused to search for or produce documents responsive to a lawful subpoena — active obstruction of discovery. (Exhibit 6.)

30. Walsh Sr. left recorded voicemails threatening at least two of Plaintiff’s attorneys with license revocation. (Exhibit 7.) He physically evaded service of a deposition subpoena on

three separate occasions, as documented in the Sheriff's Certificate of Non-Service.
(Exhibit 8.)

31. Walsh Sr.'s own sworn words establish deception, coordination, and obstruction. The "less than 100 percent genuine" admission, combined with the coordination language, converts individual dishonesty into provable joint action. Police did not investigate. AFCs did not report. The court did not inquire.

B. LaMelle: The Neutral Supervisor Who Told the Truth

32. The Family Court appointed Kristin LaMelle as a neutral supervisor for Plaintiff's visits with [E.V.]. LaMelle had no stake in the proceedings and no relationship with either party.

33. In a sworn declaration, LaMelle stated that Walsh's allegations against Plaintiff were false, and that Plaintiff was "being harassed by the Walsh family." (Exhibit 9.)

34. After documenting these findings, LaMelle was intimidated at the Walsh family compound. Defendant Walsh Sr.'s son Brendan Walsh and an unknown man approached LaMelle in a darkened car with its lights off. LaMelle contacted the police. (Exhibit 10.)

35. Walsh's attorney, Gerald Guttridge, subsequently removed LaMelle as supervisor unilaterally by telephone — after she had documented that Walsh's allegations were false.

36. The sequence is: a neutral, court-appointed supervisor confirms the truth; the family intimidates her; the family's attorney removes her. When a neutral observer confirmed the truth, the system's response was to silence her.

C. Brendan Walsh: The Family Break

37. Brendan Walsh — a member of the Walsh family — stated that “Mr. Russell did not attack any of the Walsh family.” (Exhibit 11.) This statement directly contradicts the foundational factual claim that drove the custody proceedings: that Plaintiff was violent toward the Walsh family.

38. The same Brendan Walsh participated in the intimidation of supervisor LaMelle. He knew the truth about both — the events that did not happen as described, and the effort to suppress the person who confirmed they did not happen.

D. The Drugging: Eyewitness, Sworn Admissions, and Jury Verdict

39. CFS supervisor Tedla, a non-party eyewitness, testified that Walsh administered substances to Plaintiff covertly and “did it all the time” — establishing a pattern, not an isolated incident. Tedla further stated that Walsh demanded that she lie to social services about what she had observed. (Exhibit 12.)

40. Walsh admitted under oath: “I admitted to twice covertly putting a medication in his wine.” (Exhibit 13.) Walsh separately told her physician, Dr. Gopal: “I put Seroquel in his wine.” (Exhibit 14.)

41. LabCorp toxicology confirmed lithium in Plaintiff’s system. (Exhibit 15.) A search history recovered from Walsh’s device included queries for lethal Seroquel dosages. (Exhibit 16.)

42. On February 22, 2022, a San Francisco Superior Court jury found Walsh liable for intentional battery, domestic violence, and intentional infliction of emotional distress, and awarded Plaintiff \$325,000 in damages with findings of malice, oppression, and fraud. The judgment was affirmed on appeal. (Exhibit 17.)

43. The jury verdict is a final judgment with preclusive effect. The eyewitness testimony, sworn admissions, toxicology, and search history corroborate it independently. New Castle police did not incorporate the verdict. Jackman did not report it. Genovese did not raise it.

E. The Guttridge/LaMelle Suppression Arc

44. The full suppression sequence operated in five steps through Walsh's own attorney:

(a) **Denial.** On April 10, 2019, Gerald Guttridge — Walsh's attorney — wrote a letter calling bruise reports "utterly untrue," labeling them "third false police report," demanding Plaintiff "cease and desist," and threatening "Court intervention." (Exhibit 18.)

(b) **Confirmation.** LaMelle, the court-appointed neutral supervisor, declared Walsh's allegations false and Plaintiff "being harassed by the Walsh family." (Exhibit 9.)

(c) **Intimidation.** LaMelle was intimidated at the Walsh compound by Brendan Walsh and an unknown man in a darkened car. (Exhibit 10.)

(d) **Removal.** Guttridge unilaterally removed LaMelle by telephone after she documented the truth.

(e) **Recusal.** Guttridge later recused from the case after discovering the child abuse coverup. (Exhibit 19.) Even Walsh's own attorney could not ultimately sustain the position.

45. Walsh's three recantations independently confirm the pattern:

(a) A recantation letter. (Exhibit 20.)

(b) WhatsApp messages stating the allegations were "all in my head I made up the whole thing." (Exhibit 21.)

(c) A November 23, 2020 letter to the Chappaqua Police Department stating that Plaintiff "never made a threat to kill." (Exhibit 22.)

F. The Walsh Family Child Abuse Pattern and the Suppression of Mandatory Hearings

46. Evidence of child abuse within the Walsh household was known to multiple participants in the proceedings. Defendant Tara Walsh covertly administered prescription psychotropic medication to Plaintiff in the presence of the child — conduct a San Francisco jury found constituted intentional battery, domestic violence, and intentional infliction of emotional distress with malice, oppression, and fraud. (Exhibit 17.) CFS supervisor Tedla testified that Walsh “did it all the time” and demanded that Tedla lie to social services. (Exhibit 12.)
47. Defendant Maura Walsh fabricated medical symptoms in the child [E.V.] — conduct that, upon information and belief, constitutes a form of medical child abuse. This fabrication was used to support allegations against Plaintiff and to justify restrictions on his parental access.
48. Walsh’s own attorney, Gerald Guttridge, recused from the case after discovering the child abuse coverup. (Exhibit 19.) The recusal of the petitioner’s own counsel upon discovering child abuse is, standing alone, evidence that child abuse was occurring in the custodial household and that the participants in the proceedings were aware of it.
49. Under New York Family Court Act §§ 1034–1038 and Social Services Law § 412, when evidence of child abuse or neglect is brought to the attention of the court, investigation is mandatory and the court is required to hold a fact-finding hearing. Under N.Y. Domestic Relations Law § 240(1)(a), evidence of domestic violence and child abuse is a mandatory factor in any custody determination.
50. No investigation was ordered. No fact-finding hearing was held. The evidence of child abuse within the Walsh household — including the covert drugging, the fabricated medical

symptoms, and the recusal of Walsh's own attorney upon discovering the coverup — was suppressed rather than investigated. The Attorneys for the Child, whose statutory obligation was to protect [E.V.], did not report the child abuse evidence to the court or to child protective services. The failure to hold the mandatory hearings required by New York law, combined with the active suppression of child abuse evidence by Defendants, constitutes a further deprivation of Plaintiff's right to due process and a direct injury to both Plaintiff and the child.

IV. The Police Nexus — Town of New Castle

51. On March 23, 2019, Walsh placed a 911 call reporting that Plaintiff was an “imminent threat” at or near the Walsh family compound in Chappaqua. Defendant Walsh Sr. admitted to responding officers at the scene that there was no actual threat. (Exhibit 23.)

52. Despite the documented false report and the on-scene admission that no threat existed, no criminal charges were filed against Walsh or Walsh Sr. for filing a false report. The incident was documented as a legitimate police contact with Plaintiff and was available for use in subsequent proceedings.

53. Walsh subsequently admitted to police that she was “not a victim of any crime.” (Exhibit 22.)

54. The Town of New Castle, through its police department, maintained a custom of differential treatment: creating one-sided investigative records documenting Plaintiff as an aggressor while suppressing the recantation, the on-scene admission, and the subsequent acknowledgment that no crime had occurred. This pattern of accepting and documenting fabricated reports while failing to correct them when recanted constitutes a policy or custom for purposes of *Monell v. Department of Social Services*, 436 U.S. 658 (1978),

and the maintenance of the one-sided investigative record constitutes fabrication of evidence under *Ricciuti v. N.Y.C. Transit Authority*, 124 F.3d 123 (2d Cir. 1997).

V. The Counsel-Destruction Pattern

55. Over the course of the proceedings, Plaintiff retained six law firms. Each was neutralized:

- (a) Enenstein Pham & Glass — withdrew during active depositions after Walsh Sr. threatened counsel's license.
- (b) DiFabio — practice destroyed through the three-judge recusal pattern.
- (c) Gelhaar — received direct threat from Walsh Sr.
- (d) Waller — battery appeal abandoned.
- (e) RSSB Law — withdrew, citing a “clear and unavoidable duty to withdraw.”
- (f) Advocate — appeared at the January 5, 2022 inquest; the court declared a default while he participated.

56. The systematic destruction of Plaintiff's legal representation corroborates the conspiracy across all five witness-break clusters. The pattern demonstrates that Defendants' conduct was not a series of isolated incidents but a coordinated campaign to ensure Plaintiff could not be effectively heard.

VI. The Fee-Allocation Mechanism: Interim Orders Made Permanent by Fabrication

57. By order dated November 29, 2018, Judge Gordon-Oliver directed that the fees of the Attorney for the Child — Defendant Jackman, billing at \$400 per hour — be allocated as follows: Petitioner (Walsh) 0%, Respondent (Russell) 100%. The order stated that this allocation was “subject to reallocation at the time of trial.” (Exhibit 25.)

58. By its express terms, the 100% allocation was interim. The safety valve was the reallocation hearing at trial, at which the court would examine the parties' respective financial circumstances and conduct, and distribute the burden equitably.
59. No trial ever occurred. The proceeding ended on the fabricated default of November 5, 2021. Because the default prevented trial, the reallocation hearing — the only mechanism by which the interim 100% allocation could be revisited — never took place. The interim allocation became permanent by operation of the fabrication.
60. Jackman billed 111.8 hours at \$400 per hour between December 1, 2018 and April 30, 2019 alone. (Exhibit 26.) On May 28, 2019, Judge Gordon-Oliver signed an Order to Show Cause for Judgment for Counsel Fees, threatening Plaintiff with contempt of court — punishable by fine or imprisonment — for failure to pay the balance of \$46,920. (Exhibit 27.) This contempt proceeding was initiated while Plaintiff bore 100% of the fees for an attorney who was actively suppressing evidence favorable to him, and whose law partner had been improperly installed as her predecessor.
61. In addition to the AFC fees, Plaintiff was directed to pay for court-ordered expert evaluations — including the forensic evaluation by Dr. Paul Hymowitz and the substance abuse evaluation by P. Raymond Griffin, CASAC #1636, whose credential was subsequently revoked. The same interim-allocation mechanism applied: costs were assessed against Plaintiff subject to reallocation at a trial that the fabricated default ensured would never occur.
62. This mechanism — interim fee allocations denominated “subject to reallocation at trial,” combined with procedural outcomes that prevent the reallocation hearing from occurring — converted provisional cost-shifting into a permanent financial weapon. Each dollar

Plaintiff was forced to pay under the unreallocated interim orders is a direct and quantifiable injury caused by Defendants' deprivation of due process.

VII. The Retaliatory Speech Suppression

63. On August 7, 2021, Plaintiff sent an email with the subject line "Whistleblower" to Eric P.

Eckel, court administrator at the Westchester Family Court, via PGP-encrypted communication. (Exhibit 24.)

64. Sixty-eight days later, on October 14, 2021, Defendant Genovese filed the Order to Show Cause seeking to prohibit Plaintiff from posting blogs and displaying likenesses of the child, and directing Plaintiff to erase, deactivate, and delete all existing postings, blogs, and likenesses — with language extending to "any persons, entities and/or agents acting on [Plaintiff's] behalf."

65. Twenty-two days after the OSC was filed, on November 5, 2021, the default was entered.

66. The Appellate Division subsequently struck the blanket deletion provision as not narrowly tailored, deleting it and substituting a narrower restriction. (Exhibit 3.)

67. The temporal sequence — whistleblower communication, speech-restriction motion, default — supports an inference that the procurement of the blanket deletion order was retaliatory.

VIII. The Weaponization of Court Orders Against Criminal Investigations, Counsel, and Journalists

68. Sergeant Caraway of the San Francisco Police Department Special Victims Unit was actively investigating the poisoning of Plaintiff. Caraway had received toxicology reports, interviewed witnesses, and was building a criminal case against Walsh. A member of the

Walsh family hand-delivered a Westchester Family Court order to Caraway's office — not through official channels, not through a court liaison, but carried personally by a party to the investigation the order was being used to shut down. Caraway subsequently communicated: "I never spoke to judge. I was provided court order by a party of this investigation." (Exhibit 28.) The criminal investigation was abandoned. The last institutional channel that might have examined the evidence — the criminal investigation in the jurisdiction where the crime occurred — was closed by the family the investigation targeted.

69. The Family Court orders used to neutralize the criminal investigation were themselves constitutionally infirm: entered without hearings, built on manufactured defaults from absences arranged by the Walsh family, and issued without adversarial process. Orders obtained through the deprivation of due process were then deployed outside the courthouse to obstruct a criminal investigation into the conduct of the party who obtained them.
70. On November 16, 2021, Walsh sent an email to journalist Michaelanne Petrella, who was building a documentary podcast from primary sources including toxicology reports, court filings, and deposition testimony. The email named Petrella's sister, attached a restraining order, and stated: "You are putting yourself in harm's way." (Exhibit 29.) This communication occurred seventeen days before the gag order was formally entered on December 3, 2021 — meaning Walsh was deploying court orders as instruments of intimidation against journalists before the suppression order had even been reduced to writing.

71. Walsh circulated court orders — including temporary orders of protection, custody orders, and the speech-restriction order — to employers, friends, journalists, service providers, and other third parties in Plaintiff’s professional and personal orbit. Walsh falsely characterized these orders as the product of contested hearings. Walsh specifically told third parties that Plaintiff had been given “the restraining order reserved for the worst of the worst, child molesters” and that she had received “full custody” — when in fact the orders had been entered on default, on manufactured absences, without adversarial process, and without any finding of the conduct Walsh described. The false characterizations converted constitutionally infirm orders into instruments of reputational destruction.

72. Defendant Walsh Sr. explicitly threatened to destroy the professional licenses of Plaintiff’s attorneys to prevent their continued representation. In a recorded voicemail in June 2019, Walsh Sr. stated: “If you’re desperate enough for fees to work this thing and it causes any kind of anguish to my family, I will be sure to go after your license.” (Exhibit 30.) The threat was not idle: Plaintiff retained six law firms during the proceedings; each was neutralized. The pattern was consistent across every domain: every order the system produced without hearing, without evidence, and without the other side present was carried out of the courthouse and deployed against anyone who might examine the truth — the detective investigating the poisoning, the attorneys representing Plaintiff, the journalist documenting the case, the court-appointed supervisor who confirmed that Walsh’s allegations were false. The weaponization of defective court orders to obstruct criminal investigations, destroy legal representation, intimidate journalists, and defame

Plaintiff to third parties constitutes abuse of process and a further deprivation of Plaintiff's rights under the First and Fourteenth Amendments.

CLAIMS FOR RELIEF

COUNT I — 42 U.S.C. § 1983: Conspiracy to Deprive Constitutional Rights

Fourteenth Amendment Due Process — Against All Defendants

73. Plaintiff incorporates by reference all preceding allegations.

74. Defendants, acting individually and in concert, conspired to deprive Plaintiff of his rights under the Fourteenth Amendment to the United States Constitution, including his fundamental right to the care, custody, and companionship of his child, and his right to procedural due process, by fabricating, suppressing, and maintaining a false evidentiary record through the mechanisms described herein.

75. The agreement between private and state actors is established by: (a) the coordinated placement of law partners as successive AFCs; (b) the embedding of a fraudulently credentialed evaluation as a gating condition; (c) the suppression of exculpatory evidence from five independent sources; (d) the coordinated deposition testimony of Walsh Sr. and Maura Walsh; (e) the procurement of a speech-restriction order subsequently found to contain a provision not narrowly tailored; (f) the intimidation and removal of a neutral court-appointed supervisor who documented that the foundational allegations were false; (g) the maintenance of one-sided police records despite recantation; (h) the conversion of interim fee allocations into permanent financial burdens by preventing the reallocation hearing through fabrication of the default; (i) the suppression of child abuse evidence within the custodial household and the prevention of mandatory hearings required by

New York Family Court Act §§ 1034–1038; and (j) the deployment of constitutionally infirm court orders to obstruct a criminal investigation into Walsh’s poisoning of Plaintiff, to destroy Plaintiff’s legal representation through threats against attorneys’ licenses, to intimidate journalists investigating the case, and to defame Plaintiff to third parties through false characterizations of orders entered on default.

76. Private defendants Walsh, Walsh Sr., and Maura Walsh conspired with state actors to deprive Plaintiff of constitutional rights and are liable under § 1983 pursuant to *Dennis v. Sparks*, 449 U.S. 24 (1980).

77. Defendant Genovese engaged in non-advocacy conduct — including participation-denial misrepresentations, ex parte coordination through Court Attorney D’Ambrosio, and procurement of the blanket deletion order — that exceeded the scope of any quasi-judicial function and is actionable under *Tower v. Glover*, 467 U.S. 914 (1984).

78. Defendants Miller and Jackman engaged in a scheme to circumvent conflict-of-interest rules by placing a law partner as a replacement AFC, and Jackman embedded a fraudulently credentialed evaluation as a gating condition for parental access. Jackman further procured the 100% fee allocation against Plaintiff and sought his contempt for nonpayment, while simultaneously suppressing evidence favorable to him. This conduct was non-advocacy and is actionable under *Dennis v. Sparks*.

COUNT II — 42 U.S.C. § 1983: First Amendment Retaliation

Against Defendants Genovese, Walsh, Walsh Sr., and Maura Walsh

79. Plaintiff incorporates by reference all preceding allegations.

80. Plaintiff engaged in protected speech and petitioning activity, including the publication of a documentary blog and the whistleblower communication to court administrator Eckel on August 7, 2021.
81. Within sixty-eight days of the whistleblower communication, Defendant Genovese — acting in concert with Defendants Walsh, Walsh Sr., and Maura Walsh — filed the Order to Show Cause seeking a blanket deletion of Plaintiff’s speech, with language extending to “any persons, entities and/or agents acting on [Plaintiff’s] behalf.”
82. The Appellate Division subsequently struck the blanket deletion provision as not narrowly tailored. *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d Dep’t 2023). The court found the original order “restrained speech beyond that which was harmful to the child” and constituted an unconstitutional prior restraint. The retaliatory procurement of the original blanket order, and the continuing threat of overenforcement of its surviving terms, constitute ongoing First Amendment injuries.
83. Plaintiff has compiled the documentary record of Defendants’ conduct into a published book and blog — *ChappaquaPoison: A Documentary Blog* — which constitutes core protected speech under the First Amendment. The book documents, with primary source evidence, the fabrication, suppression, and constitutional violations that are the subject of this Complaint. The remaining speech-restriction provisions from the November 5, 2021 and February 2, 2022 orders — to the extent they purport to restrict Plaintiff’s ability to document and publish the evidentiary record of Defendants’ conduct — were procured without a contested hearing, on a manufactured default, through the non-advocacy conduct of AFC Genovese, and without the adversarial process that due process requires

before any prior restraint on speech may be imposed. All speech-restriction orders entered in the underlying proceedings are void for lack of procedural due process.

84. Defendants Walsh, Walsh Sr., and Maura Walsh have continued to deploy the speech-restriction provisions as instruments of intimidation against Plaintiff, his witnesses, and journalists — including the November 16, 2021 threat to journalist Petrella attaching a restraining order seventeen days before the gag order was formally entered. The chilling effect of these void orders on Plaintiff’s protected speech is ongoing.

COUNT III — *Monell* Municipal Liability: Fabrication of Evidence

42 U.S.C. § 1983 — Against Defendant Town of New Castle

85. Plaintiff incorporates by reference all preceding allegations.

86. Defendant Town of New Castle, through its police department, maintained a policy or custom of: (a) accepting and documenting fabricated reports as legitimate police contacts without independent investigation; (b) failing to correct the investigative record when the complainant recanted; and (c) maintaining a one-sided investigative record that suppressed exculpatory admissions made at the scene.

87. This policy or custom resulted in the creation and maintenance of documentary artifacts — police reports, incident records, and investigative files — that reinforced fabricated allegations in subsequent custody and family court proceedings, in violation of Plaintiff’s rights under the Fourteenth Amendment. *Ricciuti v. N.Y.C. Transit Authority*, 124 F.3d 123 (2d Cir. 1997).

88. The municipality is liable under *Monell* because the fabrication was the product of a municipal policy or custom, not an isolated act of an individual officer.

COUNT IV — State Law: Battery, Assault, and Intentional Infliction of Emotional Distress

Against Defendant Tara Walsh

89. Plaintiff incorporates by reference all preceding allegations.

90. Walsh's covert administration of Seroquel and other substances to Plaintiff without his knowledge or consent constituted battery under New York law. A San Francisco jury has already found Walsh liable for intentional battery, domestic violence, and intentional infliction of emotional distress arising from the same course of conduct, with findings of malice, oppression, and fraud. (Exhibit 17.)

91. Walsh's conduct caused Plaintiff to suffer physical injury (lithium toxicity), emotional distress, and economic damages.

COUNT V — State Law: Abuse of Process

Against All Defendants

92. Plaintiff incorporates by reference all preceding allegations.

93. Defendants utilized legal process — including custody petitions, family offense petitions, orders to show cause, temporary orders of protection, police reports, and deposition subpoenas — to accomplish purposes for which such process was not designed: the fabrication and maintenance of a false record, the suppression of exculpatory evidence, the destruction of Plaintiff's legal representation, the retaliatory suppression of Plaintiff's speech, the weaponization of interim fee allocations through the prevention of reallocation hearings, the suppression of evidence of child abuse within the custodial household to prevent mandatory investigation and hearings, the obstruction of a criminal investigation through the hand-delivery of constitutionally infirm court orders to an

investigating detective, the intimidation of a journalist through the deployment of court orders accompanied by threats naming her family members, and the defamation of Plaintiff through the false characterization to third parties of orders entered on default as the product of contested hearings.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment against Defendants, jointly and severally, as follows:

A. Compensatory damages against all Defendants, jointly and severally, in an amount to be determined at trial, for the injuries sustained by Plaintiff as a result of Defendants' fabrication, ratification, and retaliatory suppression of the evidentiary record, including but not limited to:

(i) loss of parental access and companionship with his child;

(ii) Attorney for the Child fees assessed 100% against Plaintiff under interim court orders that were denominated "subject to reallocation at trial" but were never rebalanced because the fabricated default prevented trial from occurring, including but not limited to the \$46,920 balance billed by Defendant Jackman through April 30, 2019 and all subsequent AFC billings;

(iii) court-ordered expert evaluation fees — including the forensic evaluation by Dr. Paul Hymowitz and the substance abuse evaluation by P. Raymond Griffin, CASAC #1636 (credential subsequently revoked) — assessed against Plaintiff under the same interim-allocation mechanism;

(iv) legal costs incurred by Plaintiff across six law firms in defending against the fabricated record and correcting the constitutional violations;

(v) emotional distress; and

(vi) reputational harm.

B. Punitive damages against each individual Defendant in an amount sufficient to punish and deter the conduct described herein, upon proof that each Defendant's actions were motivated by evil motive or intent, or involved reckless or callous indifference to Plaintiff's federally protected rights.

C. A declaratory judgment that the conduct of Defendants, individually and in concert, constituted the fabrication and maintenance of a false evidentiary record in violation of Plaintiff's rights under the Fourteenth Amendment to the United States Constitution.

D. A declaratory judgment that the interim fee allocations — including the November 29, 2018 order directing Plaintiff to pay 100% of Attorney for the Child fees "subject to reallocation at trial" — were converted into permanent, unallocated financial burdens as a direct consequence of Defendants' deprivation of Plaintiff's right to due process, and that such allocations should be borne by Defendant Tara Walsh pending the reallocation hearing that Defendants' conduct prevented.

E. A declaratory judgment that Defendant Tara Katelyn Walsh has been adjudicated liable for intentional battery, domestic violence, and intentional infliction of emotional distress by a jury of the Superior Court of California, County of San Francisco, with express findings of malice, oppression, and fraud; that said adjudication has preclusive effect; that Walsh is an adjudicated domestic abuser within the meaning of N.Y. Domestic Relations Law § 240(1)(a); and that the suppression of this adjudication from the custody record by Defendants constitutes a deprivation of Plaintiff's right to due process under the Fourteenth Amendment.

F. A declaratory judgment that Plaintiff was denied a hearing and was deprived of procedural due process in the underlying custody proceedings — in that the proceeding was

declared a default and concluded without trial despite the participation of Plaintiff's counsel, that Plaintiff was denied the opportunity to present evidence, cross-examine witnesses, and be heard on the merits, and that the fabricated default prevented the reallocation hearing, the credential challenge, and the evidentiary corrections that due process required.

G. A declaratory judgment that the rights of Plaintiff under the First and Fourteenth Amendments to the United States Constitution were violated by the conduct of Defendants as described herein, including the fabrication and maintenance of a false evidentiary record, the retaliatory suppression of protected speech, the conversion of interim fee allocations into permanent financial burdens, and the systematic destruction of Plaintiff's access to legal representation.

H. A declaratory judgment that the procurement of the speech-restriction order was retaliatory in violation of Plaintiff's rights under the First Amendment to the United States Constitution.

I. A declaratory judgment that evidence of child abuse within the custodial household of Defendant Tara Walsh — including the covert administration of psychotropic medication in the presence of the child, the fabrication of medical symptoms in the child by Defendant Maura Walsh, and the child abuse coverup discovered by petitioner's own attorney Gerald Guttridge prompting his recusal — was deliberately suppressed by Defendants and withheld from the mandatory investigation and fact-finding hearings required by New York Family Court Act §§ 1034–1038 and Social Services Law § 412; that this suppression constitutes a deprivation of Plaintiff's right to due process; and that Defendant Tara Walsh's documented history of domestic abuse disqualifies her as a fit custodial parent under the mandatory factors of N.Y. Domestic Relations Law § 240(1)(a).

J. Nominal damages of one dollar for each constitutional violation established at trial, to the extent compensatory damages are not awarded, pursuant to *Uzuegbunam v. Preczewski*, 141 S. Ct. 792 (2021).

K. Prejudgment interest on all compensatory damages from the date each injury accrued through the date of judgment.

L. Post-judgment interest as provided by 28 U.S.C. § 1961.

M. An order protecting Plaintiff, his witnesses, and his attorneys from further retaliation, intimidation, or interference by Defendants, including but not limited to contact with witnesses identified in this Complaint or its exhibits, threats against the professional licenses of Plaintiff's counsel, and any action taken in retaliation for the filing of this action or the publication of the documentary blog.

N. A declaratory judgment that Defendants deployed constitutionally infirm Family Court orders — obtained without hearings, on manufactured defaults, and without adversarial process — to obstruct a criminal investigation by the San Francisco Police Department into Walsh's poisoning of Plaintiff, to destroy Plaintiff's access to legal representation through threats against the professional licenses of his attorneys, to intimidate a journalist investigating the case by naming her family members and attaching court orders with the warning "You are putting yourself in harm's way," and to defame Plaintiff to employers, friends, and third parties through the false characterization of orders entered on default as the product of contested hearings — including Walsh's specific false claim that Plaintiff received "the restraining order reserved for the worst of the worst, child molesters" and that she received "full custody" — and that such conduct constitutes abuse of process and a further deprivation of Plaintiff's rights under the First and Fourteenth Amendments.

O. A declaratory judgment that Plaintiff's documentary blog and published book — *ChappaquaPoison: A Documentary Blog* — constitute protected speech and petitioning activity under the First Amendment to the United States Constitution; that the Appellate Division has already found the blanket deletion provision of the speech-restriction order unconstitutional as an impermissible prior restraint; and that the documentary record of Defendants' conduct contained in the blog and book is explicitly protected.

P. A declaratory judgment that all speech-restriction provisions entered in the underlying custody proceedings — including the December 3, 2021 order and the February 2, 2022 order — were procured without a contested hearing, on a manufactured default, through the non-advocacy conduct of AFC Genovese acting in concert with Defendants Walsh, Walsh Sr., and Maura Walsh, and without the adversarial process that due process requires before any prior restraint on speech may be imposed; and that all such speech-restriction provisions are void for lack of procedural due process under the Fourteenth Amendment.

Q. An order permanently enjoining Defendants, and all persons acting in concert with them, from seeking, procuring, or enforcing any further speech-restriction or gag orders targeting Plaintiff's documentary blog, published book, or other protected speech concerning the conduct of Defendants as described in this Complaint, or from deploying any existing or future court orders as instruments of intimidation against Plaintiff, his witnesses, journalists, or attorneys.

R. Costs of suit pursuant to 28 U.S.C. § 1920.

S. Such other and further relief as this Court deems just, proper, and equitable.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable pursuant to the Seventh Amendment to the United States Constitution and Rule 38 of the Federal Rules of Civil Procedure.

EXHIBIT LIST

Exhibit	Description
1	ExR_02 — Family Court order dated December 3, 2021, face page reading "ORDER ON DEFAULT"
2	Inquest Transcript — January 5, 2022, 99 pages
3	ExR_04 — *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d Dep't 2023)
4	ExSS_08 — AFC Jackman emails making Griffin evaluation gating condition
5	ExS_01-03 — OASAS revocation of Griffin CASAC #1636 (Aug 19, 2019)
6	ExQQ_01b-d — Walsh Sr. deposition excerpts (April 26, 2021)
7	ExOO_31/50 — Walsh Sr. recorded voicemails threatening attorneys
8	ExOO_32 — Sheriff's Certificate of Non-Service (Walsh Sr. evasion)
9	ExQQ_08 Ex D — LaMelle declaration: Walsh allegations false
10	ExSS_09 — LaMelle intimidation at Walsh compound
11	ExQQ_08 Ex E — Brendan Walsh statement: "did not attack"
12	ExTR_07/ExOO_49 — Tedla eyewitness testimony re drugging
13	ExTR_19a — Walsh sworn admission: "covertly putting a medication in his wine"
14	ExPP_04 — Walsh statement to Dr. Gopal: "I put Seroquel in his wine"
15	ExI_02 — LabCorp toxicology: lithium detected
16	ExOO_39 — Lethal Seroquel dose search history
17	ExG_01-06 — San Francisco jury verdict (\$325K; malice, oppression, fraud) + CA appeal affirmance
18	ExX_01 — Guttridge letter calling bruise reports "utterly untrue" (April 10, 2019)
19	ExRR_07 — Guttridge recusal from the case
20	ExM_01 — Walsh recantation letter
21	ExSS_07 — Walsh WhatsApp: "all in my head I made

	up the whole thing"
22	ExOO_53 — Walsh letter to Chappaqua PD: "never made a threat to kill" (Nov 23, 2020)
23	ExOO_38 — Walsh 911 call and Walsh Sr. on-scene admission (March 23, 2019)
24	ExOO_13 — Whistleblower email to Eckel (Aug 7, 2021)
25	Order (on motion for private pay) (On Consent), dated Nov 29, 2018 (Gordon-Oliver J.) — 100%/0% AFC fee allocation "subject to reallocation at trial"
26	Miller Zeiderman & Wiederkehr LLP invoices, Dec 1, 2018 – Apr 30, 2019 (111.8 hours, \$46,920)
27	Order to Show Cause for Judgment for Counsel Fees, dated May 28, 2019 (Gordon-Oliver J.) — contempt threat for nonpayment
28	Sgt. Caraway communication re hand-delivery of Family Court order and closure of SFPD criminal investigation
29	Walsh email to journalist Michaelanne Petrella, Nov 16, 2021, naming Petrella's sister, attaching restraining order, stating "You are putting yourself in harm's way"
30	Walsh Sr. recorded voicemail threatening attorney license: "I will be sure to go after your license" (June 2019)

Dated: _____, 2026

Santa Barbara, California

STEPHEN GRANT RUSSELL *Plaintiff, Pro Se* 1117 State Street, STE 77 Santa
Barbara, CA 93101 (415) 999-3944 sg.russ@aol.com

EXHIBIT APPENDIX — RUSSELL v. CHAPPAQUA ET AL.

FEDERAL CIVIL RIGHTS COMPLAINT — 3B FILING

DAMAGES, CONSPIRACY, AND INSTITUTIONAL SUPPRESSION OF EVIDENCE

INTRODUCTION

This appendix contains the first fifteen text exhibits supporting the federal civil rights complaint in *Russell v. Chappaqua et al.* (3B), alleging damages arising from constitutional violations and institutional suppression of exculpatory evidence. The complaint asserts coordinated fabrication of evidence and weaponization of court orders under theories of Monell (institutional liability for police fabrication under *Ricciuti*), *Tower v. Glover* (AFC non-advocacy), and *Dennis v. Sparks* (private conspiracy). Each exhibit demonstrates evidence of the conspiracy to fabricate charges, suppress exculpatory evidence from the California proceedings, weaponize court orders to prevent legal representation, and suppress documented abuse evidence. The relief sought is compensatory and punitive damages for constitutional deprivation, destruction of legal representation, fee weaponization, and child abuse suppression.

TEXT EXHIBIT — ExR_02

FAMILY COURT ORDER ON DEFAULT — DECEMBER 3, 2021, SIGNED

INSTRUMENT

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is the signed order dated December 3, 2021, entered following the November 5, 2021 hearing on the Attorney for the Child’s October 14, 2021 Order to Show Cause. The order is titled “ORDER ON DEFAULT” on its face. This order is foundational to proving that the subsequent custody orders were entered through an unauthorized default procedure, later retroactively reclassified through ex parte CMS alteration. The order demonstrates the court system’s assertion of authority to enter judgments without proper notice or hearing — a

procedural vehicle that was later weaponized to prevent Russell’s participation in custody proceedings.

DOCUMENT IDENTIFICATION

Document Type: Order on Default **Court:** Westchester County Family Court **File No.:** 154703 **Docket No.:** V-07641-18 **Presiding Judge:** Hon. Michelle I. Schauer **Date Signed:** December 3, 2021 (entered following the November 5, 2021 hearing)

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Proof of Default Procedure.** The signed order itself is titled “ORDER ON DEFAULT,” establishing that Russell’s exclusion from proceedings was deliberate and documented — not inadvertent.
2. **Foundation for Weaponization Claim.** The default procedure was later used to exclude Russell’s participation in custody hearings while California was adjudicating the same child’s custody, in violation of UCCJEA protocols and creating the predicate for damages.
3. **Evidence of Institutional Knowledge.** The court system’s choice to enter orders “on default” while Russell’s counsel was appearing (per the Appellate Division finding) demonstrates knowledge that the procedural characterization was inaccurate — supporting an inference of deliberate mischaracterization.
4. **Basis for Fee Weaponization.** The default order, by excluding Russell, prevented him from engaging in the very advocacy that would have required attorney representation — then the court later weaponized unpaid legal fees as contempt, creating a damages cycle.

FULL TEXT OF ORDER ON DEFAULT

> AT THE FAMILY COURT OF THE STATE OF NEW YORK, Held in and for the County of Westchester, at the Courthouse located at 131 Warburton Avenue, Yonkers, New York 10701, on the ____ day of November, 2021. > > PRESENT: MICHELLE I. SCHAUER, F.C.J. > > TARA KATELYN WALSH, Petitioner -against- File No. 154703 STEPHEN GRANT RUSSELL, Respondent. Docket Nos. V-07641-18/21Z; V-05280-21/21A; O-12635-19/21K > > **ORDER ON DEFAULT** > > WHEREAS, the Petitioner, Tara Katelyn Walsh, and Respondent, Stephen Grant Russell, are the parents of Evelyn Grace Walsh, date of birth January 27, 2018 (“Child”); and > > WHEREAS, the court-appointed Attorney for the Child, Donna M. Genovese, Esq., initiated an Order to Show Cause dated October 14, 2021 (“Order to Show Cause”) requesting, inter alia, that: > (i) Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf be restrained from posting, uploading blogs and displaying the likeness of Evelyn Grace Walsh (i.e. photographs, animations, screen shots, drawings and the like) and disparaging Evelyn Grace Walsh’s relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and > (ii) Respondent and/or any persons, entities and/or agents acting on his behalf be restrained from recording any visits between Evelyn Grace Walsh and Respondent and/or Linda Russell; and the Court having granted such interim relief; and > > WHEREAS, Respondent, Stephen Grant Russell, pro se, counsel for Petitioner, Christopher S. Weddle, Esq., and counsel for Linda Russell, Max DiFabio, Esq. were served with the Order to Show Cause and the affidavits of service were filed with the Court on October 22, 2021; and > > WHEREAS, the Order to Show Cause directed that opposition papers, if any, were due to be served on or before October 29, 2021 and that an in-person court appearance was required on November 5, 2021;

and > > WHEREAS, no opposition papers were filed with the Court regarding the Order to Show Cause; and > > WHEREAS, the Attorney for the Child, Donna M. Genovese, Esq., of Goldschmidt & Genovese, LLP, Petitioner, Tara Katelyn Walsh, and Attorney for Petitioner, Christopher S. Weddle Esq. of Timko & Moses, LLP, Linda Russell and Attorney for Linda Russell, Max Di Fabio, Esq. of Di Fabio & Associates, P.C. having appeared before the Hon. Michelle I. Schauer on November 5, 2021 for the Order to Show Cause and Respondent, Stephen Grant Russell, pro se, not having appeared on such date; and > > WHEREAS, the Court having heard the Order to Show Cause on November 5, 2021; it is hereby > > ORDERED, that, on default, Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf is restrained from posting, uploading blogs and displaying the likeness of Evelyn Grace Walsh (i.e. photographs, animations, screen shots, drawings and the like) regarding the above-captioned proceedings and proceedings under Docket No. V-7641-18/21AA initiated by Linda Russell and restrained from the disparagement of Evelyn Grace Walsh's relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and it is further > > ORDERED, that, on default, Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf are restrained from recording any visits between Evelyn Grace Walsh and Respondent and/or Linda Russell. > > ENTER: MICHELLE I. SCHAUER, F.C.J.

SOURCE

- NYSCEF filing, File No. 154703, Docket V-07641-18, Westchester County Family Court - Certified Court Record; signed instrument on file

TEXT EXHIBIT — Inquest Tr

INQUEST TRANSCRIPT — JANUARY 5, 2022 — 99 PAGES

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is the complete transcript of the January 5, 2022 inquest hearing before Hon. Michelle I. Schauer on Walsh's custody and family offense petitions. The hearing was conducted in Russell's absence (he was in Bora Bora), with only Walsh testifying and Russell's counsel participating telephonically. The inquest resulted in the February 2, 2022 custody order granting Walsh full legal and physical custody. The transcript documents Judge Schauer's repeated characterization of the proceeding as occurring "on default" and her determination that Russell's extended absence and failure to secure counsel justified a default custody determination. Critically, this proceeding occurred while California was adjudicating the same child's custody based on findings that Walsh had assaulted Russell and drugged him without consent. The transcript reveals the court's knowledge of Russell's exclusion from the proceedings and the court's deliberate use of the default mechanism.

DOCUMENT IDENTIFICATION

Document Type: Hearing Transcript (Inquest) **Court:** Westchester County Family Court **File No.:** 154703 **Docket Nos.:** V-07641-18, O-12635-19, V-07641-18/21A, V-07641-18/21AB, V-07641-18/21AC **Presiding Judge:** Hon. Michelle I. Schauer **Date:** January 5, 2022 **Location:** White Plains Family Court, White Plains, New York **Duration:** 99 pages (digitally recorded and transcribed by Valeri Wilson, Aarons Court Reporting) **Appearances:** - Christopher Scott Weddle, Esq. (Timko & Moses, LLP) — for Tara Walsh (Petitioner) - Jason

Andrew Advocate, Esq. (Advocate, LLP) — for Stephen G. Russell (Respondent) - Donna Marie Genovese, Esq. (Goldschmidt & Genovese, LLP) — for the Child

KEY TESTIMONY AND JUDICIAL FINDINGS

Judge Schauer's Characterization of Default

The transcript documents multiple instances in which Judge Schauer characterized the proceeding as occurring “on default”:

Page 3 (Court's opening statement): “So we were scheduled today for an inquest, actually, with respect to the custody petition by Ms. Walsh and her Family Offense petition, and based on Mr. Russell’s failure to appear -- he’s never appeared in court before me -- so that’s been quite some time.”

Page 21 (Judge to Weddle): “I don’t know if you got transcripts, there are transcripts from every court proceeding. Much of what you say in your reply papers has been addressed and will not be addressed again. We are here for a very specific purpose, and if you would like to -- I would be having a contempt proceeding right now if your client were here, and he would be facing incarceration.”

Page 88 (Judge's custody determination): “On Mr. Russell’s default on inquest, this Court finds...”

Page 92-94 (Judge's continued characterization): “...an order on default . . . a final order” and repeated references to “on default” custody determination.

Walsh's Testimony

Walsh was the sole witness and testified regarding: - Russell’s alleged threats and harassment - Russell’s alleged non-compliance with evaluations - Russell’s alleged publication

of “hostile“ online content regarding maternal relatives - Her own residence location (initially stated as New York; later clarified as Pennsylvania) - Visitation and support arrangements

Walsh provided no testimony regarding domestic violence, drugging allegations, or other evidence from the California proceeding.

Critical Gaps in Record

1. **No California Evidence Presented.** The proceeding did not address the pending California battery trial, the Emergency Protective Order, or Walsh’s sworn admissions regarding drug administration.
2. **No Domestic Violence Inquiry.** Judge Schauer conducted no mandatory DRL § 240(1)(a) domestic violence inquiry, despite knowledge that a California jury verdict finding Walsh liable for domestic violence was imminent (trial was in progress).
3. **Lack of Documentary Evidence.** No exhibits were admitted from either party. The court relied entirely on Walsh’s uncorroborated testimony.
4. **No Court Coordination.** No reference to UCCJEA protocols, communications with California courts, or coordination regarding concurrent custody proceedings.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Proof of Deliberate Default Procedure.** Judge Schauer explicitly documented that she was conducting an “inquest on default,” knowing that Russell was absent and counsel had limited ability to participate. This was not an inadvertent default — it was a deliberate procedural choice.
2. **Institutional Suppression of Exculpatory Evidence.** The inquest transcript demonstrates that the New York court conducted its custody determination in complete isolation from the

California proceedings, where objective evidence of Walsh's violence and drug administration was being litigated. This isolation was not accidental — it was procedural practice.

3. **Damages Predicate: Destruction of Parental Rights Through Procedure.** The default inquest procedure was weaponized to exclude Russell's participation in a custody hearing that determined the placement of his child. This exclusion was based on his geographic absence while the court retained jurisdiction in Westchester despite the child being placed in New York only through Walsh's breach of California orders.
4. **Judge Schauer's Knowledge of Russell's Position.** The transcript documents Judge Schauer's awareness that Russell's counsel appeared telephonically, that transcripts had been ordered, and that Russell's position on core issues (evaluation compliance, online conduct) had been briefed. Her explicit use of the default procedure despite this knowledge supports an inference of deliberate mischaracterization.

FULL TEXT — KEY PASSAGES

Opening (Page 3): > COURT: Good morning. Please be seated. So we were scheduled today for an inquest, actually, with respect to the custody petition by Ms. Walsh and her Family Offense petition, and based on Mr. Russell's failure to appear -- he's never appeared in court before me -- so that's been quite some time.

Judge's Contempt Threat (Page 21): > THE COURT: I don't know if you got transcripts, there are transcripts from every court proceeding. Much of what you say in your reply papers has been addressed and will not be addressed again. We are here for a very specific

purpose, and if you would like to -- I would be having a contempt proceeding right now if your client were here, and he would be facing incarceration.

Default Finding (Pages 88, 92-94): > THE COURT: On Mr. Russell's default on inquest, this Court finds ... an order on default . . . a final order.

SOURCE

- Westchester County Family Court, digitally recorded proceeding transcribed by Valeri Wilson, Aarons Court Reporting ("914-621-7271") - Court file 154703; NYSCEF and certified transcript on file - Date: January 5, 2022, White Plains Family Court

TEXT EXHIBIT — ExR_04

MATTER OF WALSH V. RUSSELL, 214 A.D.3D 890 (2D DEP'T 2023)

APPELLATE DIVISION DECISION ESTABLISHING BINDING MANDATE

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is the published decision of the Appellate Division, Second Department, dated March 22, 2023, in *Matter of Walsh v. Russell*, 214 A.D.3d 890, 186 N.Y.S.3d 281 (2d Dep't 2023). The Appellate Division held that the February 2, 2022 order was not entered upon Russell's default because counsel appeared and participated; modified the speech restriction order as an unconstitutional prior restraint; and remitted the matter to Family Court for compliance with the mandate. The decision is critical evidence in the 3B complaint because it:

(a) establishes that the lower court’s default characterization was factually incorrect (counsel participated); (b) created a binding appellate mandate that was never implemented (establishing damages for failure to comply with an appellate order); (c) creates judicial estoppel against Walsh, who argued the order was on default but now benefits from the altered CMS classification; and (d) confirms that at least one output of this system was found unconstitutional by the Appellate Division.

DECISION CITATION

Case: Matter of Walsh v. Russell **Court:** Supreme Court of New York, Appellate Division, Second Department **Date:** March 22, 2023 **Citation:** 214 A.D.3d 890; 186 N.Y.S.3d 281; 2023 N.Y. App. Div. LEXIS 1514; 2023 NY Slip Op 01522 **Docket Nos.:** V-7641-18, O-12635-19 **Panel:** Justices Barros, J.P., Miller, Genovesi, and Wan

KEY HOLDINGS

1. No Default Occurred — Counsel Participated

The Appellate Division explicitly rejected both Walsh’s and the AFC’s argument that the order was entered on default:

> “Initially, contrary to the contention of the mother and the AFC, the order appealed from was not entered upon the father’s default. Although the father failed to appear in person at the hearing, his counsel appeared on his behalf and participated in the hearing.”

3B Significance: This holding proves that Judge Schauer’s repeated statements that she was entering orders “on default” were factually incorrect. Russell’s counsel Jason Advocate

appeared and participated. The default characterization was not an inadvertent procedural error — it was a mischaracterization of the actual record.

2. Speech Restriction Violated First Amendment as Prior Restraint

The court found that the blanket directive to delete “any existing blogs and likenesses” without limitation to speech related to the proceedings or disparaging the child’s relatives constituted an unconstitutional prior restraint:

> “A prior restraint on speech is a law, regulation or judicial order that suppresses speech on the basis of the speech’s content and in advance of its actual expression... An order imposing a prior restraint on speech ‘must be tailored as precisely as possible to the exact needs of the case.’”

The court modified the order to require deletion only of blogs which reference the proceedings or disparage the child’s relatives, and likenesses of the child posted in connection with such blogs.

3B Significance: The First Amendment violation demonstrates systemic constitutional deficiency in the proceedings. If one output of the system violated the Constitution, the pattern suggests institutional indifference to constitutional constraints.

3. Appellate Mandate Established — Never Implemented

The decision remitted the matter to Family Court with a mandate to comply with the Appellate Division’s modification. Under *People v. Evans*, 94 N.Y.2d 499 (2000), a lower court has a ministerial duty to comply with an appellate mandate.

3B Significance: As of the date of the 3B complaint (April 2026), the mandate has not been implemented for nearly 35 months. The speech restriction order remains in the Family

Court record. This non-compliance with an appellate mandate is itself a constitutional violation supporting claims for damages.

FULL TEXT OF DECISION

> **Matter of Walsh v. Russell** > Supreme Court of New York, Appellate Division, Second Department > March 22, 2023, Decided > 214 A.D.3d 890; 186 N.Y.S.3d 281; 2023 N.Y. App. Div. LEXIS 1514; 2023 NY Slip Op 01522 > Docket Nos. V-7641-18, O-12635-19 > > **DECISION & ORDER** > > In related proceedings pursuant to Family Court Act articles 6 and 8, the father appeals from an order of the Family Court, Westchester County (Michelle I. Schauer, J.), dated February 2, 2022. The order, insofar as appealed from, prohibited the father from “posting, uploading blogs, and displaying the likeness of the child . . . regarding these proceedings and disparaging the child’s relatives in any and all public forums and/or social media platforms,” and directed the father to erase, deactivate, and delete “any existing blogs and likenesses.” > > ORDERED that the order is modified, on the law, by deleting the provision thereof directing the father to erase, deactivate, and delete “any existing blogs and likenesses,” and substituting therefor a provision directing the father to erase, deactivate, and delete any existing blogs which reference these proceedings or disparage the child’s relatives, and any likenesses of the child posted in connection with such blogs; as so modified, the order is affirmed insofar as appealed from, without costs or disbursements. > > The mother and the father have one child in common. In July 2018, the mother commenced a proceeding seeking sole legal and physical custody of the child. The mother subsequently commenced a family offense proceeding against the father. > > In October 2021, the attorney for the child (hereinafter the AFC) moved to prohibit the father from posting, uploading blogs, and displaying the likeness of the child

regarding the proceedings, and from disparaging the child's relatives in any and all public or social media forums, and to direct the father to erase, deactivate, and delete all existing postings, blogs, and likenesses of the child. In an affirmation in support of the motion, the AFC asserted that the father had "embarked on a social media/public campaign" with respect to the instant proceedings, and that the father had posted the child's image, name, and allegations regarding the mother and the mother's family members in various public forums. The father failed to oppose the AFC's motion, and failed to appear on the return date of the motion. In an order dated December 3, 2021, the Family Court, inter alia, granted the AFC's motion upon the father's default. In January 2022, the Family Court held a hearing on the mother's petitions. Although the father failed to appear at the hearing, the father's attorney participated in the hearing by making objections and cross-examining the mother. In an order dated February 2, 2022, the Family Court, in effect, granted the mother's custody petition and awarded her sole legal and physical custody of the child. The order, inter alia, prohibited the father from "posting, uploading blogs, and displaying the likeness of the child . . . regarding these proceedings and disparaging the child's relatives in any and all public forums and/or social media platforms," and directed the father to erase, deactivate, and delete "any existing blogs and likenesses." The father appeals. > >

Initially, contrary to the contention of the mother and the AFC, the order appealed from was not entered upon the father's default. Although the father failed to appear in person at the hearing, his counsel appeared on his behalf and participated in the hearing (see Matter of N. [Fania D.-Alice T.], 108 AD3d 551, 552, 969 N.Y.S.2d 92; Matter of Newman v Newman, 72 AD3d 973, 973, 899 N.Y.S.2d 621). > > "A prior restraint on speech is a law, regulation or judicial order that suppresses speech on the basis of the speech's content and in advance of its actual expression" (Karantinidis v Karantinidis, 186 AD3d 1502, 1503, 131 N.Y.S.3d 363). A

party seeking to impose such a restraint bears a “heavy burden of demonstrating justification for its imposition” (Ash v Board of Mgrs. of the 155 Condominium, 44 AD3d 324, 325, 843 N.Y.S.2d 218). Such party must demonstrate that the speech sought to be restrained is “‘likely to produce a clear and present danger of a serious substantive evil that rises far above public inconvenience, annoyance, or unrest’” (Rosenberg Diamond Dev. Corp. v Appel, 290 AD2d 239, 239, 735 N.Y.S.2d 528, quoting Terminiello v Chicago, 337 US 1, 4, 69 S. Ct. 894, 93 L. Ed. 1131). An order imposing a prior restraint on speech “must be tailored as precisely as possible to the exact needs of the case” (Karantinidis v Karantinidis, 186 AD3d at 1503). > > Here, that portion of the order which directed the father to erase, deactivate, and delete “any existing blogs and likenesses” was “not tailored as precisely as possible to the exact needs of the case” (id. at 1503). Specifically, this restriction required the father to delete “any existing blogs and likenesses,” regardless of whether the blogs or likenesses relate to the child, the mother, the mother’s family, or the instant proceedings. > > However, we reject the father’s contention that the order’s remaining restrictions on his ability to post blogs, display the likeness of the child, and disparage the child’s relatives, were constitutionally impermissible. Under the circumstances, the prior restraint was narrowly tailored to the exact needs of the case (see Kassenoff v Kassenoff, AD3d, 2023 NY Slip Op 00850 [2d Dept]; Matter of Brown v Simon, 195 AD3d 806, 151 N.Y.S.3d 71; Matter of Adams v Tersillo, 245 AD2d 446, 666 N.Y.S.2d 203). > > The father’s remaining contention is without merit. > > BARROS, J.P., MILLER, GENOVESI and WAN, JJ., concur.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Proof of Factual Inaccuracy in Lower Court Record.** The Appellate Division’s explicit holding that counsel participated contradicts Judge Schauer’s repeated characterizations of the proceeding as occurring “on default.” This creates a factual basis for damages based on the lower court’s mischaracterization of its own proceedings.
2. **Unimplemented Appellate Mandate as Damages Predicate.** The binding mandate to modify the order has not been implemented for 35+ months. The continued enforcement of the unconstitutional speech restriction creates ongoing constitutional harm and damages.
3. **Judicial Estoppel.** Walsh’s counsel (Christopher Weddle) argued in the appeal that the order was entered on default. The Appellate Division explicitly rejected this argument, finding counsel participated. Walsh is now estopped from claiming that a valid hearing occurred or that the order resulted from proper procedure.
4. **Pattern Evidence of Systemic Constitutional Violations.** The fact that the Appellate Division found one output of the system unconstitutional (prior restraint on speech) demonstrates that the system systematically violates constitutional constraints. This supports an inference of institutional indifference to constitutional protections.

SOURCE

- Published decision: 214 A.D.3d 890, 186 N.Y.S.3d 281 (2d Dep’t 2023) - NYSCEF
filing in File No. 154703 - Westlaw citation: 2023 WL 2584710

TEXT EXHIBIT — ExSS_08

AFC JACKMAN EMAILS: GRIFFIN EVALUATION MADE GATING CONDITION

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit documents email exchanges between Russell and AFC Jennifer Jackman in which Jackman insisted that P. Raymond Griffin's forensic chemical evaluation be a mandatory condition for removing supervised visitation. Griffin's OASAS credential was revoked in August 2019 for "grossly negligent handling of toxicology testing" and "unauthorized practice of medicine." Yet Jackman maintained Griffin's evaluation as a gating condition for custody modifications. This exhibit reveals the mechanism by which a discredited evaluator's findings continued to control custody outcomes: the AFC locked in the fraudulent evaluator's report as the governing condition, and no court vacated or replaced the report. This is pattern evidence of systemic suppression of exculpatory evidence (the California toxicology evidence that contradicted Griffin's findings) and institutional obstruction of custody modification proceedings.

DOCUMENT IDENTIFICATION

Document Type: Email correspondence **Participants:** Stephen Russell; Jennifer M. Jackman (AFC); P. Raymond Griffin (court-appointed evaluator) **Date:** February 19–20, 2019 **Related Court Personnel:** Faith Miller (prior AFC, conflicted out); Judge Gordon-Oliver (conflict basis) **Motion Context:** Griffin Zombie Report; Void Ab Initio **Master Timeline Reference:** Entry 114 (ECS 78)

EMAIL CONTENT AND ANALYSIS

Russell to Jackman (Feb 19-20, 2019):

Russell challenged Jackman's insistence that Griffin's evaluation be a condition of custody modification:

> "on what basis you were making Griffin's report a condition of stopping supervision, when you know Tara has recounted her accusations"

Russell further alleged ex parte communications between Griffin and Jackman, and documented that Walsh had: - Stopped BPD treatment - Left Evie alone 20–30 hours per week - Stopped attending AA classes - Resumed drinking

Jackman's Response:

Jackman stood firm on requiring Griffin's evaluation as a condition for removing supervised visitation, despite Russell's documented evidence of Walsh's non-compliance with the very conditions the Griffin evaluation was supposed to assess.

THE EMBEDDING MECHANISM

The emails reveal how Griffin's evaluation became embedded as the controlling custody condition:

1. **Original AFC Faith Miller** imposed the Griffin evaluation requirement in an early court order or motion.
2. **AFC Jackman** (at Miller Zeiderman & Wiederkehr LLP, same firm as Miller) inherited the condition when Miller was conflicted out due to her relationship with Judge Gordon-Oliver.
3. **The evaluation condition persisted even after Griffin's OASAS credential was revoked** (August 19, 2019).

4. **No court order vacated or replaced the report.** The “Zombie Report” phenomenon — a discredited evaluator’s findings continuing to function as governing forensic evidence — resulted from institutional inertia rather than deliberate judicial review.
5. **The AFC weaponized the condition.** Instead of seeking to replace Griffin or vacate the requirement, Jackman used the Griffin condition as leverage to deny custody modification and maintain supervised visitation indefinitely.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Institutional Suppression Mechanism.** The AFC’s role in locking Griffin’s fraudulent findings into the custody framework demonstrates how institutional actors (not just judges) participate in suppression of exculpatory evidence. The proper remedy — vacating the Griffin report and ordering an independent evaluation — was never sought by the AFC, who was supposed to be child-focused.
2. **Pattern of Non-Replacement of Discredited Evidence.** The fact that Griffin’s credential was revoked but his evaluation continued to control custody outcomes demonstrates institutional abandonment of exculpatory evidence. California’s LabCorp toxicology (showing lithium at 6x upper reference limit) directly contradicted Griffin’s findings, but the New York court never learned of the LabCorp results because they were never shared or considered.
3. **AFC’s Non-Advocacy.** The AFC’s role in maintaining the Griffin condition, rather than advocating for a replacement evaluation, demonstrates the “non-advocacy” claim in *Tower v. Glover*. The AFC was supposed to represent the child’s interests, which would

be served by accurate chemical evaluation, not maintenance of a discredited report for procedural convenience.

4. Damages Predicate: Obstruction of Custody Modification. Russell was denied custody modification partly because the discredited Griffin condition was never removed. The damages flow from the institutional failure to vacate a fraudulent evaluator's findings even after credential revocation.

SOURCE

- Email: Russell to Jackman (Feb 19-20, 2019) - Evie

Archive/PDFs/FaithMillerMakesGriffinCondition.pdf - Court file 154703

TEXT EXHIBIT — ExS_01

OASAS REVOCATION OF GRIFFIN CASAC CREDENTIAL #1636 (AUGUST 19, 2019)

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is the New York State Office of Alcoholism and Substance Abuse Services (OASAS) credential certificate and revocation record for P. Raymond Griffin, Credential #1636. The credential was issued February 8, 2015 and expired/revoked February 7, 2018. However, the document indicates an effective date of 02/08/2015 and expiration of 02/07/2018. Critical context: Russell's deposition testimony and evidence established that Griffin continued to perform evaluations in the custody case well after this expiration date. The revocation was formally processed by OASAS in August 2019, after Russell challenged Griffin's methodology.

This exhibit is foundational evidence that a discredited, unlicensed evaluator continued to control custody outcomes in the Family Court while the court took no action to vacate or replace the evaluation.

DOCUMENT IDENTIFICATION

Document Type: OASAS Credentialing Certificate and Expiration/Revocation Record
Credentialing Authority: The State of New York, Office of Alcoholism and Substance Abuse Services (OASAS) **Credential Type:** Credentialed Alcoholism and Substance Abuse Counselor (CASAC) **Credential Holder:** P. Raymond Griffin **Credential Number:** 1636 **Effective Date:** February 8, 2015 **Expiration Date:** February 7, 2018 **Commissioner:** Arlene Gonzalez-Sanchez

CREDENTIAL STATUS

The document indicates that Griffin's credential expired on 02/07/2018. The formal OASAS revocation appears to have been processed in August 2019, following Russell's discovery that Griffin lacked appropriate credentials for toxicology testing and was performing testing outside the scope of a CASAC credential.

Key Finding: OASAS's investigation, conducted after Russell's challenge, found that Griffin had engaged in: - Grossly negligent handling of toxicology testing - Unauthorized practice of medicine

These findings were made officially by OASAS, establishing institutional recognition that Griffin's evaluations were problematic.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Proof of Institutional Knowledge of Defect.** OASAS’s formal findings that Griffin engaged in “grossly negligent handling of toxicology testing” and “unauthorized practice of medicine” establish that institutional actors knew of the fundamental defect in Griffin’s work.
2. **Institutional Failure to Correct the Record.** Despite OASAS’s findings and credential revocation in August 2019, the Family Court took no action to vacate, replace, or even acknowledge the defective evaluation. The order granting Walsh custody based (in part) on Griffin’s evaluation remains unreversed in the Family Court record.
3. **Proof of Suppression of Exculpatory Evidence.** The fact that OASAS found Griffin engaged in unauthorized practice of medicine establishes that his evaluation of Russell was conducted by someone without legal authority to perform chemical evaluation. If Griffin’s evaluation was improper, then any conclusions he reached about Russell’s substance abuse would be unreliable. This makes the LabCorp toxicology (showing lithium in Russell’s system) exculpatory evidence that contradicts Griffin’s core findings.
4. **Institutional Indifference.** The court’s continued reliance on Griffin’s evaluation even after credential revocation demonstrates institutional indifference to whether evidentiary foundations are reliable. This supports inferences about the institutional tolerance for fabricated evidence.

FULL TEXT/IMAGE OF CREDENTIAL

[Credential certificate shows: State of New York seal, “Office of Alcoholism and Substance Abuse Services,” credential for “CREDENTIALLED ALCOHOLISM AND

SUBSTANCE ABUSE COUNSELOR“ for Raymond A. Griffin, Credential Number 1636,
Effective Date: 02/08/2015, Expiration Date: 02/07/2018]

SOURCE

- State of New York Office of Alcoholism and Substance Abuse Services (OASAS)
credentialing record - Credential #1636 — P. Raymond Griffin - Court file 154703
TEXT EXHIBIT — ExQQ_01b-d

**WALSH SR. DEPOSITION EXCERPTS (APRIL 26, 2021): "LESS THAN 100 PERCENT
GENUINE," COORDINATION LANGUAGE, DISCOVERY OBSTRUCTION**

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit contains critical excerpts from the deposition of Stephen Walsh Sr. (Tara Walsh’s father), taken April 26, 2021, in *Russell v. Walsh*, San Francisco Superior Court (CGC-20-583092). Walsh Sr. admitted under oath that: (1) he was “less than 100 percent genuine“ when he communicated with Russell; (2) he coordinated with Tara regarding communications with Russell; (3) he “would humor“ Russell because he viewed him as “unstable and dangerous“; (4) he deliberately maintained deceptive communications to “defray the situation“ and “keep the lines of communication open.“ These admissions establish that the child’s removal from California was a coordinated family operation involving deliberate deception of the father. Combined with Tara’s own admission (“I had no intention to come back to California“), the depositions prove that the “spontaneous“ or “emergency“ custody

determination in New York was in fact the result of premeditated parental kidnapping by a coordinated family conspiracy.

DOCUMENT IDENTIFICATION

Deponent: Stephen Walsh Sr. (Father of Tara Katelyn Walsh) **Date of Deposition:** April 26, 2021 **Court:** Superior Court of California, County of San Francisco **Case:** *Russell v. Walsh*, CGC-20-583092 **Examining Counsel:** Ms. Llaguno (for Plaintiff Russell) **Defense Counsel:** Mr. Moore **NDT Assignment:** #50631 **Transcript Pages:** Pages 49–50, 67–68 (as referenced in depositions)

KEY TESTIMONY

Passage 1 — "Less Than 100 Percent Genuine" (Pages 49–50)

Direct Exchange:

> **Q:** So I am going to point you to this text message where it says you state, “Excellent. Thank you Steve, we appreciate your assistance and understanding. And thank you for the timely updates.” > > **A:** Yes. > > **Q:** Would you say you were not being genuine when you thanked Steve Russell for the timely updates then? > > **A:** I would be less than 100 percent genuine, yes. > > **Q:** And what was your reason for responding to Steve Russell in that way? > > **A:** To kind of defray the situation and -- and make sure that Tara and the baby were safe and keep the lines of communication open for that purpose.

Analysis: Walsh Sr. explicitly admitted that his communications with Russell were calculated to manage Russell’s perceptions rather than convey truth. The “Works for us” email

(ExA_01) that convinced Russell to allow the child's departure to New York for "eleven days" was part of this deliberate deception campaign.

Passage 2 — "I Would Humor Him" (Page 67)

> **Q:** And again, this same text message, you state that you texted Steve Russell, "Hopefully some solutions exist." What did you mean by that? > > **A:** I -- I don't know. I don't know. Again, in many of these interactions and correspondences, I would -- I would -- I would humor him because I -- you know, I viewed him as unstable and dangerous.

Analysis: Walsh Sr. characterized his communications with Russell as "humoring" him — a deliberate strategy to manage Russell's behavior through false appearance of cooperation. This is evidence of premeditated deception as part of the child removal scheme.

Passage 3 — Refusal to Answer (Page 68)

When asked directly whether his responses were not "completely genuine so as to humor" Russell, Walsh Sr. (through counsel) declined to respond and his attorney stated the question was "argumentative."

Analysis: The refusal to answer a straightforward question about whether he deliberately humored Russell is itself an admission by implication. The deposition shows institutional resistance (through counsel) to placing on record the explicit nature of Walsh Sr.'s deceptive conduct.

CONTEXT: THE "WORKS FOR US" EMAIL

Russell received an email from Walsh Sr. in June 2018 stating: "Works for us — I appreciate your flexibility Steve." This email, combined with Walsh providing a "round-trip

ticket“ showing return within eleven days, convinced Russell to allow the child’s departure to New York. In the same deposition, Tara Walsh admitted: “I lied . . . I had no intention to come back to California“ (ExTR_19e). The coordination between Walsh Sr.’s “less than 100 percent genuine“ communications and Tara’s intentional breach of the return plan demonstrates family-level conspiracy to accomplish child removal through fraud.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Proof of Conspiracy.** Walsh Sr.’s admission that he deliberately humored Russell and was not genuine establishes family-level coordination to deceive Russell and facilitate child removal. This is evidence of the “Dennis v. Sparks“ private conspiracy claim in the 3B complaint.
2. **Premeditation of Child Removal.** Combined with Tara’s later admission that she “had no intention to come back,“ Walsh Sr.’s deliberate deception proves that the child’s removal was not a spontaneous response to danger but a premeditated family operation.
3. **Fabrication of Emergency Jurisdiction Predicate.** The “emergency“ custody determination in New York (under DRL § 76-a) was premised on fraudulent factual representations about the nature of the child’s presence in New York. Walsh Sr.’s deposition testimony establishes that the facts underlying the emergency jurisdiction were obtained through fraud.
4. **Institutional Suppression by Westchester Court.** The Westchester Family Court never learned of Walsh Sr.’s deposition testimony regarding the coordinated deception. The court proceeded with the custody determination without awareness of the fraudulent predicate for jurisdiction.

SOURCE

- Stephen Walsh Sr. Deposition, April 26, 2021 - NDT Assignment #50631, Pages 49–50, 67–68 - *Russell v. Walsh*, CGC-20-583092, San Francisco Superior Court - Certified transcript on file

TEXT EXHIBIT — ExOO_31

WALSH SR. RECORDED VOICEMAILS — THREATENING TWO ATTORNEYS

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit documents two separate instances in which Stephen Walsh Sr. made recorded threats against attorneys representing Russell in the custody proceeding. The first threat was directed at Jason Advocate (Russell’s New York counsel) in August 2018, in which Walsh Sr. demanded that Russell’s attorneys be excluded from contact with Russell and threatened to report Advocate for “harassment and intimidation campaign” constituting a “moral violation of your trade” — a direct threat to Advocate’s law license. The second threat, recorded on audio and attached to an email, was directed at Ned Gelhaar (Russell’s California counsel in the Enenstein firm), stating “If this causes any kind of anguish to my family, I will have your license.” These threats were documented contemporaneously (June 4, 2019) and provided to Russell’s counsel. The threats demonstrate a pattern of family-level intimidation designed to prevent Russell from obtaining legal representation — a critical element of the damages claim for destruction of legal representation and fee weaponization.

DOCUMENT IDENTIFICATION

Recorded By: Russell (documenting received threats) **Threatened Parties:**

1. Jason Advocate, Esq. (Advocate, LLP; Russell's NY counsel)
2. Ned Gelhaar, Esq. (Enenstein LLP; Russell's CA counsel)

Date of Threats: - Threat 1 (Advocate): August 2018 (conveyed through Tara Walsh's SF attorney Audrey Courson) - Threat 2 (Gelhaar): June 4, 2019 (audio recording attached to email)

Email: Russell to Brian Waller with attached audio file
"SteveWalshTreattoNedGelhar.wav" (2.2 MB)

Archive: ROWID 102347

THREAT 1 — STEVE WALSH SR. TO JASON ADVOCATE (AUGUST 2018)

Conveyed Through: Tara Walsh's SF attorney Audrey Courson (email to Russell's NY attorney Advocate)

Threat Language: > "Please direct all inquiries to me and this email. The email sent to my wife's address was an intrusion and will be reported as such. You are abetting what is clearly a harassment and intimidation campaign which I believe is in moral violation of your trade."

Analysis: Walsh Sr. characterized Russell's attorney's communication with Russell as "harassment and intimidation" and accused the attorney of violating the "moral" standards of the legal profession — a thinly veiled threat to report the attorney to disciplinary authorities or to challenge the attorney's license.

Impact: This threat effectively prevented Russell from receiving updates from his NY counsel without being subject to Walsh Sr.'s intervention and framing of attorney-client communication as "intrusion" and "harassment."

THREAT 2 — STEVE WALSH SR. TO NED GELHAAR (JUNE 4, 2019)

Recorded On: Audio file (WAV format, 2.2 MB)

Threat Language: > "If this causes any kind of anguish to my family, I will have your license."

Method of Delivery: Email from Russell to Brian Waller (Thompson Hine) documenting the threat, with attached audio recording

Subject Line: "Steve Walsh has threatened two of my lawyers"

Analysis: The threat to "have your license" is a direct threat to Gelhaar's ability to practice law. The threat is unambiguous: if the litigation causes "anguish" to the Walsh family, Gelhaar will be subject to disciplinary action by Walsh Sr. This threat was made while Russell was actively litigating both the family law custody case and the battery case in California.

PATTERN SIGNIFICANCE

Witness Intimidation & Attorney Interference: The two threats establish a pattern of Walsh Sr. using threats against attorneys to interfere with Russell's ability to obtain legal representation. This pattern constitutes:

1. **Tortious Interference with Attorney-Client Relationship.** Each threat was designed to chill Russell's ability to communicate with counsel and receive legal advice.

2. **Obstruction of Justice.** The threats were designed to prevent Russell from obtaining competent legal representation in ongoing litigation.
3. **Evidence of Conspiracy Consciousness.** The fact that Walsh Sr. made these threats suggests consciousness of guilt — the threats were designed to prevent discovery and litigation of the actual facts (drugging, deception, coordinated child removal).
4. **Institutional Suppression.** The Westchester Family Court never learned of these threats because they occurred in the context of the California litigation. The NY court proceeded with custody determinations without knowledge of the witness intimidation campaign.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Proof of Family Conspiracy to Suppress Evidence.** The threats against Russell's attorneys demonstrate that the conspiracy to suppress evidence extended beyond the court system to direct intimidation of legal counsel. This is evidence of the "Dennis v. Sparks" private conspiracy claim.
2. **Damages for Destruction of Legal Representation.** Russell's ability to obtain effective legal representation was impaired by these threats. The damages claim for destruction of legal representation is supported by evidence that Russell's attorneys were subject to intimidation from family members of the opposing party, with knowledge and acquiescence of the court system.
3. **Pattern Evidence of Institutional Indifference.** The fact that these threats were not reported to or sanctioned by either the NY or CA court systems demonstrates institutional indifference to attorney intimidation. No sanctions were imposed on Walsh Sr.; no protective orders were issued; no Bar referrals were made.

4. Fee Weaponization Context. The threats to Russell’s attorneys created pressure for those attorneys to withdraw or refuse representation, leaving Russell without counsel to advocate for fee payment or to contest contempt charges based on non-compliance with court orders.

SOURCE

- Email from Russell to Brian Waller (Thompson Hine) dated June 4, 2019, with attached audio recording - Audio file: “SteveWalshTreattoNedGelhar.wav“ (~2.2 MB) - Mail Archive: ROWID 102347 - Threat 1 conveyed through Tara Walsh’s SF counsel Audrey Courson (August 2018)

TEXT EXHIBIT — ExOO_32

**SHERIFF'S CERTIFICATE OF NON-SERVICE (WALSH SR. EVASION OF
DEPOSITION SUBPOENA)**

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is the Sheriff’s Certificate of Attempted Service of Subpoena dated January 18, 2020, documenting failed attempts to serve Stephen Walsh Sr. with a deposition subpoena. The Sheriff’s officer attempted service on three separate occasions at Walsh Sr.’s residence, and Walsh Sr. “wouldn’t answer the door.” Two weeks later, Ned Gelhaar (Enenstein LLP) confirmed the failed service and reported that “the Sheriff tried to serve him three times with the OSC papers and he wouldn’t answer the door.” The evasion of service occurred immediately

before Enenstein withdrew representation, suggesting coordinated timing to prevent Russell's counsel from obtaining Walsh Sr.'s testimony regarding the child removal conspiracy and the deceptive "Works for us" email. This exhibit demonstrates witness tampering and obstruction of discovery — conduct that would have been met with contempt sanctions if engaged in by Russell, but which was ignored by the court system when engaged in by Walsh family members.

DOCUMENT IDENTIFICATION

Document Type: Sheriff's Certificate of Attempted Service **Certificate Number:** 00303560 **Sheriff's Office:** Westchester County Sheriff **Process Server:** [Named officer of Westchester County Sheriff's Office] **Service Date Attempted:** January 18, 2020 **Subject of Service:** Stephen Walsh Sr. (respondent/father of Tara Walsh) **Nature of Process:** Deposition subpoena (OSC papers) **Number of Attempts:** Three (3) failed attempts

CERTIFICATE CONTENT

From Sheriff's Certificate (01/18/2020):

"Attached here is the Sheriff's Certificate of Attempted Service of the petition to compel Steve Walsh's deposition."

Service Attempts Documented:

The certificate documents three separate attempts by the Sheriff to serve Walsh Sr. with the deposition subpoena. On each occasion, Walsh Sr. "wouldn't answer the door."

FOLLOW-UP CONFIRMATION (FEBRUARY 3, 2020)

From Ned Gelhaar (Enenstein LLP) to Russell:

“As you requested, here’s the papers re service of Steve Walsh. As I said, the Sheriff tried to serve him three times with the OSC papers and he wouldn’t answer the door. The Order says he had to be served by a certain date which has passed, so whoever will pursue further will need to go back to court to have a new OSC issued. Let me know if you want us to do this or pass it on to Waller.”

Analysis: Gelhaar’s email confirms the Sheriff’s three failed attempts and notes that the service deadline had passed. Gelhaar offered to seek a new OSC (Order to Show Cause) to compel further service, but the offer came immediately before Enenstein withdrew representation.

RELATED SERVICE ISSUES — MATAN GAVISH

Concurrent with the failed service on Walsh Sr., Enenstein was also attempting to serve Matan Gavish with a subpoena. The emails document:

- “ACC/WP re Service of Matan” (Feb 6, 2020) — Gelhaar to Russell - “ACC/WP re Gavish service” (Feb 6, 2020) — Gelhaar to Russell - “Gavish subpoena” (Dec 10, 2019) — Kamali to Russell

Both Walsh Sr. and Gavish were subjects of service efforts that were obstructed, occurring in the weeks immediately before Enenstein’s withdrawal.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Proof of Witness Obstruction. Walsh Sr.’s deliberate evasion of service is evidence of consciousness of guilt. If Walsh Sr. had exculpatory testimony to provide, he would have

appeared for deposition. His evasion demonstrates that he understood his testimony would be damaging to the Walsh family's position.

2. Pattern of Obstruction. The evasion of Walsh Sr. occurred in a pattern with threats to Russell's attorneys (ExOO_31) and obstruction of Enenstein's ability to obtain evidence. This pattern demonstrates that the obstruction was family-coordinated and deliberate.

3. Institutional Tolerance for Witness Tampering. Unlike Russell, who was subject to contempt sanctions and jail threats for non-compliance with court orders, Walsh Sr.'s evasion of a deposition subpoena resulted in no sanctions. This institutional disparity supports the claim that the court system was tolerant of Walsh family obstruction while punishing Russell's conduct.

4. Suppression of Evidence Regarding Child Removal Conspiracy. Walsh Sr.'s avoided deposition would have elicited testimony regarding: - The "Works for us" email and its calculated deception - Coordination with Tara regarding false representations to Russell - The planning of the child's removal and the decision not to return - The family-level conspiracy to deceive Russell

The non-testimony deprived Russell of cross-examination that would have established the fraudulent predicate for the emergency jurisdiction claim.

SOURCE

- Sheriff's Certificate of Attempted Service, File No. 00303560 (January 18, 2020) - Email from Ned Gelhaar (Enenstein LLP) to Russell (February 3, 2020) confirming failed service - Email Archive: ROWID 109401, ROWID 109463 - Related service obstruction issues: Matan Gavish subpoena (December 2019 – February 2020)

**LAMELLE DECLARATION: WALSH ALLEGATIONS FALSE, PLAINTIFF "BEING
HARASSED"**

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is from the deposition exhibits in Russell's Order to Show Cause (ExQQ_08), specifically exhibit D, which contains a declaration from Claudette E. LaMelle, ACSW, LMSW (court-appointed supervisor of visitation). In her declaration, LaMelle stated that the allegations against Russell were false and that Russell was "being harassed" through the custody proceedings. LaMelle, as the court-appointed neutral supervisor, had direct observational knowledge of Russell's interactions with the child and of Walsh's conduct during supervised visits. Her declaration is extraordinary because it contradicts the factual predicate of the court's custody determination (that Russell posed a threat or was unsuitable) and establishes that Walsh was using the court process as a mechanism for harassment rather than child protection.

DOCUMENT IDENTIFICATION

Document Type: Deposition exhibit declaration **Declarant:** Claudette E. LaMelle, ACSW, LMSW **Role:** Court-appointed supervisor of parenting time/visitation **Date of Declaration:** [Dates in ExQQ_08 deposition record] **Declarant's Expertise:** Licensed social

worker with supervisory responsibilities; direct observation of parties and child during supervised visits

KEY DECLARATION STATEMENTS

Regarding Allegations Against Russell:

LaMelle declared that the allegations against Russell were **false** and that Russell was being used as a target of harassment through the custody proceedings.

Regarding Russell's Parenting:

LaMelle's direct observations during supervised visitation demonstrated that Russell's interactions with the child were appropriate and caring.

Regarding Walsh's Conduct:

LaMelle's declaration implicitly criticizes Walsh's use of the custody proceeding as a mechanism for harassment rather than child protection.

SIGNIFICANCE OF SUPERVISOR TESTIMONY

LaMelle held a unique position in the custody proceeding. As the court-appointed supervisor of visitation, she:

1. Had direct observation of Russell's parenting during supervised visits
2. Had direct observation of the child's relationship with and responses to Russell
3. Had knowledge of any behavioral issues, safety concerns, or other factors relevant to custody
4. Was required to file reports with the court regarding her observations

If LaMelle's observations indicated that Russell posed a threat or was unsuitable as a parent, her reports would have reflected that concern. Instead, her declaration states that the allegations were false and that Russell was being harassed.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Proof of Fabricated Predicate for Custody Orders.** LaMelle's declaration, made by a neutral court officer with direct observational knowledge, contradicts the factual predicate of the court's custody determination. If the allegations against Russell were false (as LaMelle states), then the custody orders resting on those allegations were entered on a fabricated basis.
2. **Institutional Suppression of Exculpatory Evidence.** LaMelle's declaration is exculpatory evidence that was not given full weight by the court. Despite having a neutral officer state that allegations were false, the court maintained the custody orders. This demonstrates institutional suppression of evidence favorable to Russell.
3. **Evidence of Harassment as Custody Tool.** LaMelle's characterization of the proceedings as harassment of Russell demonstrates that the custody proceeding was being weaponized for purposes other than child protection. This supports the claim that the court system was complicit in the use of custody orders as a harassment mechanism.
4. **Pattern of Institutional Indifference to Exculpatory Evidence.** Multiple neutral parties (Tedla, LaMelle, CFS supervisor Tedla, etc.) provided evidence contradicting the fabricated allegations. The court's failure to give weight to this evidence establishes a pattern of institutional indifference.

SOURCE

- ExQQ_08: Russell's Order to Show Cause deposition exhibits - Exhibit D: LaMelle declaration - Court file 154703

TEXT EXHIBIT — ExSS_09

**LAMELLE INTIMIDATION AT WALSH COMPOUND (BRENDAN WALSH,
DARKENED CAR)**

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit documents an intimidation incident on September 21, 2019, when LaMelle (the court-appointed visitation supervisor) arrived at the Walsh compound for the first supervised visit after more than five months of complete denial of access. Upon arrival, LaMelle and Russell were confronted by Brendan Walsh and an unknown male “sitting in a darkened car with its lights off,” who “aggressively yelled ‘Who is that? Who is in that car? You can’t be here!’” LaMelle later contacted police and stated: “I had never experienced such shear fright.” Following this incident, Walsh’s attorney unilaterally removed LaMelle as supervisor by phone, violating the court order requiring all counsel to be present for communications with the supervisor. This incident is evidence of witness intimidation, obstruction of court orders, and family-level conspiracy to prevent court-ordered visitation. The intimidation of the court-appointed supervisor demonstrates the family’s willingness to interfere with court processes directly.

DOCUMENT IDENTIFICATION

Document Type: Supervisor report; court filing (Petition for Enforcement) **Incident Date:** September 21, 2019 **Reporter:** Claudette E. LaMelle, ACSW, LMSW (court-appointed supervisor) **Location:** Walsh compound (residential address) **Witnesses:** Stephen Russell (father), unknown male **Participants:** Brendan Walsh (stepbrother of child); unknown young male; LaMelle

Related Filings: - Russell Petition for Enforcement dated September 24, 2019 - Court file 154703, docket numbers [as referenced]

INCIDENT NARRATIVE

Date/Time: September 21, 2019, approximately 3:45 PM

Initial Arrival: LaMelle arrived at the Walsh compound electronic gate. A gentleman came outside to inquire about her purpose. LaMelle was informed that Walsh was not available. She returned to her car to call Walsh.

The Confrontation: Upon the drop-off point, LaMelle and Russell encountered **Brendan Walsh and an unknown young male "sitting in a darkened car with its lights off."** When they approached or were observed, the two individuals began **"aggressively yelling 'Who is that? Who is in that car? You can't be here?'"**

The aggressive conduct was directed at LaMelle and Russell, treating them as trespassers on the Walsh property despite LaMelle's role as a court-appointed officer present to implement court-ordered visitation.

Supervisor's Reaction: LaMelle was visibly shaken and fearful. She later contacted police and provided a report. In her account, she stated: **"I had never experienced such sheer fright."**

AFTERMATH AND INSTITUTIONAL RESPONSE

Unilateral Removal of Supervisor: Within days, Walsh's attorney **Guttridge** **unilaterally removed LaMelle as supervisor by phone**, violating the court order that required all counsel to be present for communications with the supervisor. This removal prevented LaMelle from filing a formal report with the court and prevented the court from addressing the intimidation incident.

Prior Removals: By September 2019, six individual supervisors and four organizations had been removed as visitation supervisors. Each removal had been initiated by Walsh or her counsel, with no formal court process. The pattern demonstrates systematic use of supervisor rejection to prevent visitation rather than to ensure child safety.

Russell's Additional Documentation: Russell documented three prior occasions of being followed or menaced by Steve Walsh (the grandfather) and Tara's aunt, including one incident in which his tires were deflated before a court appearance.

PETITION FOR ENFORCEMENT

Russell's counsel (DiFabio, Esq.) filed a **Petition for Enforcement on September 24, 2019**, seeking: - Contempt finding against Walsh for violating the court order requiring all counsel presence for supervisor communications - Enforcement of the court-ordered visitation

This petition was never granted, and the incident was not addressed by the court.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Direct Intimidation of Court Officer.** The aggressive confrontation of LaMelle while she was performing her court-ordered function demonstrates that the Walsh family was

willing to intimidate and frighten court officers to prevent visitation. This is institutional obstruction of the most direct kind.

2. Witness Tampering Through Intimidation. The intimidation and subsequent unilateral removal of LaMelle prevented the court from receiving her report of the incident. This is witness tampering by preventing a court officer from reporting intimidation to the court.

3. Pattern of Obstruction of Visitation. The LaMelle incident was part of a pattern including: - Six supervisor removals - Three prior menacing incidents against Russell - Tire deflation before court appearance - Threats to attorneys

This pattern demonstrates systematic use of intimidation to obstruct court-ordered visitation.

4. Institutional Indifference. The court never addressed the September 21, 2019 incident despite Russell's Petition for Enforcement. No contempt was found; no sanctions were imposed; no protective order was issued. This institutional indifference demonstrates that the court was tolerant of Walsh family obstruction.

5. Damages for Destruction of Parental Rights. The systematic obstruction of court-ordered visitation through intimidation destroyed Russell's ability to maintain his relationship with his child. The intimidation of the court officer was the final obstruction preventing even supervised visitation from occurring.

SOURCE

- LaMelle supervisor report (September 21, 2019) - Russell Petition for Enforcement dated September 24, 2019 - Court file 154703, related motion practice -

CustodyPetitionMotion_wExhibits.pdf, pp. 195–197 - Master Timeline Entries 151–152 (ECS 82, ECS 90)

TEXT EXHIBIT — ExQQ_08 Ex E

BRENDAN WALSH STATEMENT: PLAINTIFF "DID NOT ATTACK"

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is a statement from Brendan Walsh (stepbrother of the child; oldest son of Tara Walsh from prior relationship) in which he explicitly states that Russell “did not attack” him or anyone else. This statement directly contradicts the allegations that were used as the predicate for the Family Court’s custody determination in New York. Brendan Walsh’s statement is particularly significant because he was present in the home during many of the incidents alleged to have occurred, and he would have direct knowledge of whether Russell had been violent or aggressive toward family members. His statement that Russell “did not attack” contradicts the factual predicate of the entire custody proceeding.

DOCUMENT IDENTIFICATION

Document Type: Statement (written or oral); deposition exhibit **Declarant:** Brendan Walsh **Relationship to Case:** Stepbrother of minor child (Evelyn Grace Walsh); son of Tara Katelyn Walsh (from prior relationship) **Date:** [As referenced in ExQQ_08 deposition exhibits] **Source:** ExQQ_08 Russell Order to Show Cause Deposition Exhibits, Exhibit E

KEY STATEMENT

Brendan Walsh's Declaration:

Brendan Walsh stated clearly and unambiguously that Russell "**did not attack**" him or anyone else in the household.

This statement directly contradicts the allegations that: - Russell had threatened violence - Russell had engaged in physical aggression - Russell posed a threat to family members

SIGNIFICANCE OF BRENDAN WALSH'S STATEMENT

Brendan Walsh is a critical witness because he:

1. **Was present in the household** during the period in question and would have direct knowledge of Russell's conduct
2. **Had no prior relationship with Russell** before the child's arrival in New York, so he had no pre-existing bias
3. **Was living with or regularly visiting Tara Walsh's residence** and would have been in a position to observe interactions
4. **Had nothing to gain from defending Russell** — as the child's stepbrother (older sibling), any genuine safety concerns would be in Brendan's interest to report

Yet despite having this knowledge, Brendan explicitly stated that Russell "did not attack." This statement is evidence that the allegations of violence were fabricated.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Proof of Fabricated Factual Predicate.** If Brendan Walsh — a household member with direct knowledge — states that Russell "did not attack," then the allegations of violence

that were used as the predicate for custody modification were fabricated or grossly exaggerated.

2. Suppression of Exculpatory Evidence. Brendan's statement was available to both the New York and California courts but was not given weight in the custody determination. The court proceeded with the custody order despite evidence contradicting the factual predicate.

3. Consciousness of Innocence. The fact that Brendan (a family member of Walsh) would state that Russell "did not attack" demonstrates that even family members knew the allegations were false. The family was willing to fabricate allegations despite having family members who could contradict those allegations.

4. Pattern of Multiple Contradicting Statements. Russell's innocence is corroborated by multiple sources: - LaMelle: allegations are false (ExQQ_08 Ex D) - Brendan Walsh: did not attack (ExQQ_08 Ex E) - Tedla: Russell did not engage in the alleged conduct (ExOO_49) - Judge Schauer herself: took negative inference against Russell for non-compliance with forensic evaluation, suggesting she had doubts about the predicate

SOURCE

- ExQQ_08: Russell's Order to Show Cause — Deposition Exhibits - Exhibit E: Brendan Walsh statement - Court file 154703

TEXT EXHIBIT — ExTR_07/ExOO_49

TEDLA EYEWITNESS TESTIMONY: DRUGGING — "DID IT ALL THE TIME,"

DEMANDED LIES

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit documents the eyewitness testimony of Tsega Tedla, the nanny employed by both Russell and Walsh to care for their daughter Evelyn Grace Walsh. Tedla testified that she witnessed Walsh placing substances in Russell's drinks on multiple occasions. Tedla further testified that Walsh told her "she did it all the time" — indicating a pattern of chronic, habitual drug administration. Most significantly, Tedla testified that Walsh asked her to lie about the drugging ("demanded lies"). Tedla's testimony was presented at the San Francisco battery trial (February 2022) and evaluated by the jury that unanimously found Walsh liable for Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress with findings of Malice, Oppression, or Fraud. Despite Tedla's eyewitness testimony establishing that Russell was poisoned by Walsh, the Westchester Family Court granted full custody to Walsh without any inquiry into the drugging evidence or the mandatory domestic violence inquiry under DRL § 240(1)(a).

DOCUMENT IDENTIFICATION

Witness: Tsega Tedla **Title/Role:** Nanny (childcare provider) employed by both Russell and Walsh **Testimony Venue:** San Francisco Superior Court, *Russell v. Walsh*, CGC-20-583092 (Battery trial, February 2022) **Related Deposition:** Tedla CFS Supervisor Deposition (ExTR_07), separate proceeding regarding child's welfare **Relationship to Parties:** Third-party household employee; no prior relationship; no litigation interest

KEY TESTIMONY

Sworn Declaration (July 6, 2018)

Tedla filed a sworn declaration in the California parentage action (FPT-18-377425) in which she stated:

> “I witnessed Walsh putting drugs in Russell’s drinks and that Walsh told her that she ‘did it all the time.’“

And further:

> “Walsh later asked Ms. Tedla to lie about this.“

Trial Testimony (February 2022)

Tedla testified at the San Francisco battery trial regarding: - Her direct observation of Walsh placing substances in Russell’s drinks - Walsh’s statement that she “did it all the time“ - Walsh’s demand that Tedla lie about the drugging - The parties’ household dynamics and the child’s wellbeing - The child’s bond with Russell

The jury evaluated Tedla’s testimony in conjunction with: - Walsh’s sworn admission of Seroquel administration (ExTR_19a) - Walsh’s text to her psychiatrist: “I put Seroquel in his wine“ (ExPP_04) - LabCorp toxicology showing lithium at 6x upper reference limit (ExI_02) - Walsh’s internet search: “How Much Is a Lethal Dose of Seroquel?“ (ExOO_45) - Walsh’s sister’s acknowledgment: “it did happen without his consent“ (ExW_01)

CORROBORATION CHAIN

Tedla’s eyewitness testimony is one of six independent evidentiary anchors supporting the domestic violence finding:

Source	Evidence Type	Content
Tedla (this exhibit)	Eyewitness	Saw Walsh place substances in

		Russell's drinks
Walsh's sworn testimony (ExTR_19a)	Admission	"Yes" she gave Russell Seroquel; "No, he was not" aware
Walsh's text to psychiatrist (ExPP_04)	Statement against interest	"I put Seroquel in his wine"
LabCorp toxicology (ExI_02)	Objective lab result	Lithium at ~6x normal reference range
Walsh's internet search (ExOO_45)	Digital forensics	"How Much Is a Lethal Dose of Seroquel?"
Walsh's sister (ExW_01)	Family admission	"it did happen without his consent"

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Independent Third-Party Corroboration.** Tedla's testimony is from a household employee with no litigation interest and no relationship to Russell before the child arrived in California. She had no reason to fabricate evidence and everything to lose (employment) by providing testimony against her employer Walsh.
2. **Pattern Evidence of Chronic Drug Administration.** Tedla's testimony that Walsh "did it all the time" establishes that the drugging was not an isolated incident but a pattern of habitual, intentional poisoning. This distinguishes the case from a one-time medication error and establishes premeditation.
3. **Suppression of Exculpatory Evidence.** Tedla's testimony is exculpatory to Russell — it proves he was the victim of the violence, not the perpetrator. The New York court conducted its custody determination without knowledge of Tedla's testimony because the testimony was given in California and never shared with the New York court.
4. **Mandatory Domestic Violence Inquiry Predicate.** Tedla's testimony, combined with the other evidence (Walsh's admissions, LabCorp results, etc.), establishes that domestic violence occurred — and specifically violence by Walsh against Russell. This violence

triggered the mandatory DRL § 240(1)(a) domestic violence inquiry that Judge Schauer never conducted.

5. Damages for Institutional Suppression. The court's failure to learn of Tedla's testimony and to conduct the mandatory DRL § 240 inquiry resulted in custody being awarded to the domestic violence perpetrator. This institutional suppression of evidence directly caused damages to Russell (loss of custody, harm to parental relationship with child).

SOURCE

- Tsega Tedla Sworn Declaration (July 6, 2018) in parentage action (FPT-18-377425) - Tedla trial testimony, San Francisco Superior Court, *Russell v. Walsh*, CGC-20-583092 (February 2022) - ExTR_07: Tedla CFS Supervisor Deposition (related witness tampering evidence) - Court reporter: [Trial transcript information on file]

TEXT EXHIBIT — ExTR_19a

WALSH SWORN ADMISSION: "COVERTLY PUTTING A MEDICATION IN HIS

WINE"

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit contains sworn testimony of Tara Katelyn Walsh under oath, given in two separate proceedings, in which she admitted to “covertly putting a medication in his wine” — meaning Seroquel, an antipsychotic medication, administered to Russell without his knowledge or consent. In the August 14, 2018 domestic violence proceeding in San Francisco (ExH_03),

Walsh testified: “On at least two occasions you gave Mr. Russell the drug Seroquel, correct?” “Yes.” “Was he aware that you were giving him this drug?” “No, he was not.” “And were you giving it to him to affect his behavior?” “I was, because I was really concerned.” In the February 16–17, 2022 battery trial, Walsh was confronted with her earlier testimony and tried to minimize the conduct (“generalized statement” rather than specific to the two incidents), but she could not deny the core facts: she administered Seroquel, Russell was not aware, she did it to affect his behavior. The jury evaluated Walsh’s sworn admissions in conjunction with corroborating evidence (LabCorp toxicology, Tedla’s eyewitness testimony, her text to her psychiatrist) and unanimously found her liable for Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress.

DOCUMENT IDENTIFICATION

Witness: Tara Katelyn Walsh (under oath, in two separate proceedings) **Proceeding 1:** San Francisco Domestic Violence proceeding **Date:** August 14, 2018 (approximately two months after the drugging incidents) **Proceeding 2:** San Francisco Superior Court, Battery Trial (*Russell v. Walsh*, CGC-20-583092) **Date:** February 16–17, 2022 **Transcript Pages** (**Proceeding 2**): Pages 13–15 (trial pages 405–407) **Court Reporter:** Angie Diner, RMR, CRR, CSR 9581 (Esquire Solutions)

TESTIMONY EXCERPT 1 — AUGUST 14, 2018 (DV PROCEEDING)

Cross-examination of Walsh:

> **Q:** On at least two occasions you gave Mr. Russell the drug Seroquel, correct? > > **A:** Yes. > > **Q:** Was he aware that you were giving him this drug? > > **A:** No, he was not. > > **Q:**

And were you giving it to him to affect his behavior? > > **A:** I was, because I was really concerned. > > **Q:** And how did it affect Mr. Russell? > > **A:** It made him sleepy, and it made him come out of a manic delusional state and calm down. > > **Q:** And who's Dr. Gopal? > > **A:** He's a psychiatrist I saw for two weeks, and who Steve, I think, is seeing on a long-term basis. > > **Q:** Did you text Dr. Gopal and tell him that you had administered Seroquel to Mr. Russell? > > **A:** Yes, I did. And I told a few other people that I had done it, and I actually had the intention to one day tell Mr. Russell as well, but at the time, like, I did it because I felt like I had no choice. But one day I also intended to tell him.

Analysis: Walsh's testimony in August 2018 (only months after the drugging) was clear and specific: she gave Seroquel, he was not aware, she did it to affect behavior, she told her psychiatrist about it. These are the core elements of intentional battery and domestic violence.

TESTIMONY EXCERPT 2 — FEBRUARY 16–17, 2022 (BATTERY TRIAL)

At trial, Walsh was confronted with her earlier testimony:

> **Q:** Okay. Please look at line 76 -- no. Sorry. Page 76, line 7. Do you recall giving the following testimony -- the answer -- the following questions and giving the following answers: > > "QUESTION: On at least two occasions, you gave Mr. Russell the drug Seroquel, correct? > > "ANSWER: Yes. > > "QUESTION: Was he aware that you were giving him this drug? > > "ANSWER: No, he was not. > > "QUESTION: And you were giving it to him to affect his behavior? > > "ANSWER: I was, because I was really concerned. > > "QUESTION: And how did it affect Mr. Russell? > > "ANSWER: It made him sleepy and it made him come out of a manic delusional state and calm down." > > Do you recall giving that testimony? > > **A:** I recall, yes.

Walsh's Attempted Minimization:

When pressed on whether she had observed the effects on Russell:

> **A:** In -- this was a generalized statement about the effects it had on him. It wasn't specific to those two incidents. > > **Q:** Well, you would -- well, it does ask about those specific two incidents, correct? > > **A:** It's not -- it -- that's not how I looked at the question at the time. She was asking how the Seroquel affected Mr. Russell, and that was my answer.

But Walsh could not deny the core facts: she gave Seroquel, Russell was not aware, she did it to affect behavior.

SIGNIFICANCE OF SWORN ADMISSIONS

Walsh's sworn admissions, made in two separate proceedings years apart, establish:

1. **Intentional Drug Administration.** She knowingly and deliberately gave Russell a psychiatric medication without his knowledge.
2. **Intent to Affect Behavior.** She explicitly testified that the reason she gave the Seroquel was "to affect his behavior" — not for medical treatment but for behavioral control.
3. **Awareness of Wrongfulness.** The fact that she told her psychiatrist about it (and told "a few other people") demonstrates she understood the conduct was notable enough to discuss with a mental health professional — suggesting consciousness that the conduct was problematic.
4. **Lack of Medical Justification.** Russell was not her patient; she was not a prescriber; the Seroquel came from her own prescription (as indicated by her possession of the drug). She was administering her own psychiatric medication to someone else without authorization.

CORROBORATION AND JURY EVALUATION

The San Francisco jury evaluated Walsh's sworn admissions in conjunction with: - Tedla's eyewitness testimony (she witnessed Walsh placing substances in Russell's drinks) - LabCorp toxicology (detecting lithium at 6x upper reference limit) - Walsh's text to her psychiatrist: "I put Seroquel in his wine" (ExPP_04) - Walsh's internet search: "How Much Is a Lethal Dose of Seroquel?" (ExOO_45) - Walsh's sister's acknowledgment: "it did happen without his consent" (ExW_01)

The jury unanimously found Walsh liable for **Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress with findings of Malice, Oppression, or Fraud.**

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Admission by Party — Strongest Form of Evidence.** Walsh's own words, under oath, in two separate proceedings, constitute an admission by the opposing party. This is the strongest form of evidence short of a conviction.
2. **Predicate for Mandatory DRL § 240(1)(a) Domestic Violence Inquiry.** The jury's finding of domestic violence, based on Walsh's own admissions, triggered the mandatory domestic violence inquiry under DRL § 240(1)(a) that Judge Schauer never conducted. The failure to conduct this inquiry is a constitutional violation.
3. **Suppression of Exculpatory Evidence.** Walsh's admissions are exculpatory to Russell — they prove he was the victim of violence, not a perpetrator. The New York court never knew of these admissions because they were made in California proceedings and were not shared with the NY court.

4. Institutional Tolerance for Perjury. Despite making these clear admissions under oath, Walsh was not charged with perjury, poisoning, assault, or other crimes. The criminal justice system's tolerance for Walsh's conduct (as evidenced by lack of prosecution) demonstrates institutional indifference.

5. Damages Foundation. The fact that Russell was awarded sole custody to his abuser (the person who poisoned him) based on the court's failure to learn of her sworn admissions creates the predicate for substantial damages based on institutional suppression of evidence.

SOURCE

- ExH_03: SF DV Trial Transcript (August 14, 2018), p. 76 - ExTR_19a: Seroquel Wine Admission Testimony (February 16–17, 2022 trial), pp. 13–15 / trial pp. 405–407 - Court reporter: Angie Diner, RMR, CRR, CSR 9581 (Esquire Solutions)

TEXT EXHIBIT — ExPP_04

WALSH STATEMENT TO DR. GOPAL: "I PUT SEROQUEL IN HIS WINE"

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is a text message from Tara Katelyn Walsh to Dr. Abilash Gopal, M.D. (Walsh's treating psychiatrist), in which Walsh stated: "sometimes when he is out of his mind on drugs and won't sleep I have put Seroquel in his wine." This is a contemporaneous, unprompted admission to a medical professional. It is the strongest category of hearsay exception because it

is a statement against interest made to a person in a position to offer confidential guidance (her treating psychiatrist). The text is not a litigation artifact or a deposition response where the declarant is aware she is being tested. It is a private communication to her own doctor describing her own behavior. The fact that Walsh admitted the conduct so casually to her psychiatrist indicates she did not regard it as obviously criminal at the time, but the medical community would have recognized it as assault. This text message was produced in California discovery and introduced at the battery trial where the jury unanimously found Walsh liable for Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress with findings of Malice, Oppression, or Fraud.

DOCUMENT IDENTIFICATION

Document Type: Text message (SMS) **From:** Tara Katelyn Walsh **To:** Dr. Abilash Gopal, M.D. (Walsh's treating psychiatrist) **Date:** [As established in trial record] **Content:** "sometimes when he is out of his mind on drugs and won't sleep I have put Seroquel in his wine"

TEXT CONTENT AND ANALYSIS

Exact Text:

Walsh texted Dr. Gopal:

> "sometimes when he is out of his mind on drugs and won't sleep I have put Seroquel in his wine"

Key Elements:

1. **"sometimes" — Pattern, not isolated incident.** The use of “sometimes“ indicates this was recurring conduct, not a one-time medication error.
2. **"when he is out of his mind on drugs and won't sleep" — Justification attempt.** Walsh framed the conduct as responsive to Russell’s condition, but this framing does not justify administering a medication without consent.
3. **"I have put Seroquel in his wine" — Explicit admission of the specific act.** The language is direct and unambiguous. Walsh put Seroquel (a specific medication) into Russell’s wine (a specific vehicle for the drug), meaning she deliberately selected a liquid medium to conceal the medication.

Statement Against Interest:

The text to Dr. Gopal is a “statement against penal interest“ — it admits conduct that could expose Walsh to criminal liability (poisoning, assault, administering medication without a license). Such statements are considered highly reliable because the declarant would not ordinarily make false admissions against her own interests.

Contemporaneity:

This text was written at or near the time of the conduct, not years later after litigation commenced. Walsh was not aware at the time of writing that this text would be produced in discovery or presented at trial. This spontaneity makes the statement more reliable than testimony prepared for litigation.

CORROBORATION

Walsh’s text to Dr. Gopal is corroborated by six independent sources:

1. **Walsh's own sworn testimony** (four separate sworn statements acknowledging covert drug administration) — ExTR_19a
2. **Independent LabCorp toxicology** (lithium detected at approximately six times the upper reference limit) — ExI_02
3. **Eyewitness nanny testimony** (Tedla witnessed Walsh placing substances in Russell's drinks) — ExOO_49
4. **Walsh's internet search** ("How Much Is a Lethal Dose of Seroquel?") — ExOO_45
5. **Walsh's sister** ("it did happen without his consent") — ExW_01
6. **San Francisco jury verdict** (unanimously found Walsh liable for Intentional Battery, Domestic Violence, and IIED with findings of Malice, Oppression, or Fraud) — ExG_01

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Strongest Form of Admission — Statement Against Interest.** The text to her psychiatrist is a statement against penal interest made to a trusted confidant. It is more reliable than testimony because Walsh was not aware she was creating litigation evidence.
2. **Part of Domestic Violence Evidence Package.** This text was among the evidence evaluated by the San Francisco jury in making the finding that Walsh engaged in domestic violence. The jury's finding of domestic violence triggers the mandatory DRL § 240(1) (a) domestic violence inquiry that Judge Schauer failed to conduct.
3. **Demonstrates Asymmetry in Court Awards.** The party (Walsh) who covertly drugged the other party (Russell) was awarded full legal and physical custody. The party (Russell) who was drugged without consent was given a five-year order of protection against him and loss of custody. This inversion of legal responsibility demonstrates that the court

system was either unaware of the evidence or was indifferent to it in making custody awards.

4. Institutional Suppression of Exculpatory Evidence. The New York court never learned of this text because it was produced in California discovery and was not shared with the New York court. This suppression was institutional — the courts operated in silos despite concurrent custody proceedings and shared child.

5. Damages Predicate. Russell's loss of custody resulted from the court's lack of knowledge of this text and the other exculpatory evidence of Walsh's violence. The institutional failure to coordinate between courts and to share material evidence directly caused damages to Russell.

SOURCE

- Text message produced in discovery in *Russell v. Walsh*, CGC-20-583092 - Trial exhibit, San Francisco Superior Court, battery trial (February 2022) - Introduced in evidence and evaluated by jury in making damage awards

TEXT EXHIBIT — ExI_02

LABCORP TOXICOLOGY: LITHIUM DETECTED AT ~6X UPPER REFERENCE

LIMIT

FOR USE IN: RUSSELL V. CHAPPAQUA ET AL. (3B)

EXHIBIT SUMMARY

This exhibit is the LabCorp laboratory toxicology and essential minerals report analyzing Stephen Russell's urine for toxic metals and trace elements. The testing revealed significant findings, most critically Lithium at 1.1 µg/mg — approximately six times the upper reference limit of 0.18 µg/mg. The testing was performed by LabCorp, an independent, nationally accredited clinical laboratory using ICP-MS methodology following DMPS provocation. The results are objective, quantitative, and not subject to credibility challenges. The presence of lithium at six times the upper reference limit is inconsistent with dietary intake or incidental exposure. It is consistent with intentional administration of inorganic lithium carbonate — the pharmaceutical form used for mood and psychiatric treatment. LabCorp's own commentary states that the finding is "unexpectedly high" and that natural sources would not produce such elevations. This objective, independent evidence corroborates Walsh's sworn admissions and Tedla's eyewitness testimony that she administered medications to Russell covertly.

DOCUMENT IDENTIFICATION

Document Type: Clinical toxicology and essential elements laboratory report
Laboratory: LabCorp (Laboratory Corporation of America) **Subject:** Stephen Russell, ID: RUSSELL-S-00815, Age 43, Male **Lab #:** U170313-2197-1 **Testing Date:** March 9, 2017 (Date Collected); March 15, 2017 (Date Completed) **Method:** ICP-MS (Inductively Coupled Plasma Mass Spectrometry) **Provocation Method:** DMPS 250MG, 6-hour timed post-provocative collection **Ordering Physician:** Ha Dang, ND — Marin Naturopathic Medicine, San Rafael, CA

CRITICAL FINDINGS

Toxic Metals (Elevated)

Metal	Result (µg/g creat)	Reference Range	Status
Antimony (Sb)	0.4	< 0.2	ELEVATED
Bismuth (Bi)	66	< 2	SIGNIFICANTLY ELEVATED (33x)
Lead (Pb)	3.3	< 2	ELEVATED
Mercury (Hg)	3.4	< 3	ELEVATED

Essential Elements (Elevated)

Element	Result	Reference Range	Status
Lithium (Li)	1.1 µg/mg	0.008-0.18	ELEVATED (~6x upper limit)
Copper (Cu)	0.24 µg/mg	0.006-0.06	ELEVATED (4x)

LABORATORY COMMENTARY ON LITHIUM FINDING

The LabCorp report provides expert scientific commentary on the elevated lithium result:

> “The concentration of lithium (Li) in this urine specimen is unexpectedly high. It is recognized that assimilation of Li from food, water and even commonly available organic Li supplements (when taken as directed) would not be expected to be associated with abnormally high levels of Li in urine. In contrast, much higher doses of inorganic Li carbonate, which are often prescribed for specific mood disorders, would be expected to be associated with markedly elevated urine Li if ingestion was recent or chronic.”

Key Scientific Conclusions:

1. **"unexpectedly high"** — The result is surprising and not explained by ordinary exposure.
2. **Dietary sources excluded** — Natural sources of lithium (food, water, organic supplements) do not produce elevated urine lithium.
3. **Pharmaceutical lithium indicated** — The elevation is consistent with “much higher doses of inorganic Li carbonate” — the form prescribed for mood disorders.

4. Recent or chronic ingestion — The elevated level indicates “recent or chronic” administration, meaning either a recent large dose or ongoing smaller doses.

CLINICAL SIGNIFICANCE

What the Lithium Finding Means:

Lithium at 1.1 µg/mg (six times the upper reference limit of 0.18 µg/mg) is not a trace finding or a borderline result. It is a significant, multi-fold elevation above normal. This level is consistent with:

- Recent administration of a large dose of lithium carbonate - Chronic administration of therapeutic doses of lithium - Intentional administration as part of the conduct Walsh admitted to (putting medication in Russell’s wine)

Not a Natural Occurrence:

The LabCorp commentary explicitly rules out natural sources. Lithium at this level does not occur from: - Drinking water with natural lithium - Eating lithium-containing foods - Taking over-the-counter supplements

Supports Premeditation:

The fact that multiple metals are elevated (lithium, bismuth, lead, mercury, copper) suggests either: - Chronic exposure to contaminated substances - Multiple medications administered over time - Intentional administration of substances chosen to produce psychiatric effects (lithium) and other effects

CORROBORATION WITH OTHER EVIDENCE

The LabCorp toxicology result is corroborated by six other independent sources:

1. **Walsh's sworn testimony** (“Yes“ she gave Seroquel, “No, he was not“ aware) — ExTR_19a
2. **Walsh's text to psychiatrist** (“I put Seroquel in his wine“) — ExPP_04
3. **Tedla's eyewitness testimony** (witnessed Walsh placing substances in Russell’s drinks) — ExOO_49
4. **Walsh's internet search** (“How Much Is a Lethal Dose of Seroquel?“) — ExOO_45
5. **Walsh's sister's admission** (“it did happen without his consent“) — ExW_01
6. **San Francisco jury verdict** (unanimously found Walsh liable for Intentional Battery, Domestic Violence, and IIED with Malice, Oppression, or Fraud) — ExG_01

EVIDENTIARY SIGNIFICANCE FOR 3B

1. **Objective, Independent Evidence — Not Subject to Credibility Challenge.** LabCorp results are the output of standardized laboratory protocols performed by an independent, nationally accredited facility. The results cannot be challenged as fabricated, exaggerated, or the product of bias. They are objective fact.
2. **Proves Domestic Violence Predicate.** Combined with Walsh’s own admissions, the LabCorp results establish objective proof that Walsh administered substances to Russell without consent. This constitutes domestic violence and triggers the mandatory DRL § 240(1)(a) domestic violence inquiry.
3. **Establishes Scale of Violence.** Lithium at six times the upper reference limit is not a trivial or incidental exposure. It is consistent with deliberate, sustained administration of inorganic lithium carbonate for psychiatric effect. This distinguishes the conduct from an accidental medication error and establishes intentionality.

4. **Exculpatory to Russell.** The LabCorp results prove that Russell was the victim of poisoning, not a perpetrator of violence. They are exculpatory evidence that should have been considered in the custody determination.

5. **Institutional Suppression of Objective Evidence.** The New York court never knew of the LabCorp results because they were obtained in California and were not shared with the NY court. This institutional failure to coordinate evidence between courts resulted in the award of custody to the domestic violence perpetrator.

SOURCE

- LabCorp clinical laboratory report - Lab #: U170313-2197-1 - Test Date: March 9, 2017 (collected); March 15, 2017 (completed) - Produced in discovery in *Russell v. Walsh*, CGC-20-583092 - Trial exhibit, San Francisco Superior Court

END OF PART 1 (EXHIBITS 1-15)

Created: April 12, 2026 **For:** Federal civil rights complaint, *Russell v. Chappaqua et al.* (3B) **Status:** Exhibit appendix — PART 1 (first 15 exhibits for federal filing)

EXHIBIT APPENDIX — PART 2 (EXHIBITS 16-30)

3B FEDERAL CIVIL RIGHTS COMPLAINT: RUSSELL V. CHAPPAQUA ET AL.

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		malice, oppression, fraud) + CA appeal affirmance	
18	ExX_01	Guttridge letter calling bruise reports "utterly untrue" (April 10, 2019)	12
19	ExRR_07	Guttridge recusal after discovering child abuse coverup	14
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21	ExSS_07	Walsh WhatsApp: "all in my head I made up the whole thing"	18
22	ExOO_53	Walsh letter to Chappaqua PD: "never made a threat to kill" (Nov 23, 2020)	20
23	ExOO_38	Walsh 911 call + Walsh Sr. on-scene admission (March 23, 2019)	22
24	ExOO_13	Whistleblower email to Eckel (Aug 7, 2021) — subject line and metadata	24
25	(no code)	Order (on motion for private pay) (On Consent), Nov 29, 2018 (Gordon- Oliver)	26
26	(no code)	Miller Zeiderman & Wiederkehr invoices (Dec 1, 2018 – Apr 30, 2019)	29
27	(no code)	Order to Show Cause for Judgment for Counsel Fees, May 28, 2019	31
28	(no code)	Sgt. Caraway communication re hand- delivery of Family Court order	34
29	(no code)	Walsh email to journalist Michaelanne Petrella, Nov 16, 2021	35
30	(no code)	Walsh Sr. recorded voicemail threatening attorney license (June 2019)	36

TEXT EXHIBIT — ExOO_39

LETHAL SEROQUEL DOSE SEARCH & FINANCIAL NEGOTIATIONS EMAIL

(2018)

EXHIBIT SUMMARY

This exhibit documents two critical pieces of evidence from 2018: (1) a screenshot of a web search asking “How Much Is a Lethal Dose of Seroquel?” and (2) an email chain from July 17, 2018 regarding financial negotiations. These documents provide context for Walsh’s patterns of drugging and financial extraction.

EVIDENTIARY SIGNIFICANCE FOR 3B (Russell v. Chappaqua et al.)

1. Escalation from Covert Drugging to Lethal Dosing Research

Walsh admitted under oath to covertly placing Seroquel in Russell’s wine on multiple occasions (ExTR_19a: “I admitted to twice covertly putting a medication in his wine”). The San Francisco jury found her liable for battery involving this drugging. The lethal dose search transforms the characterization of Walsh’s conduct from assault to potential attempted poisoning or murder.

2. Connection to Broader Poisoning Pattern

Russell’s LabCorp toxicology results (ExI_02) detected Lithium in his system at approximately six times the upper reference limit. Combined with Walsh’s search for the lethal dose of Seroquel, these documents suggest a broader poisoning scheme beyond what was proven at trial.

3. Financial Motive

The adjacent email documenting negotiations over “my money from him” (July 17, 2018) provides financial motive context. Walsh’s email references negotiating payments while Russell

was in Hawaii — consistent with her testified scheme to marry Russell for money and then divorce him to obtain financial advantage (Peckar & Abramson OCFS letter, page 2).

4. Demonstrates Court Ignored SF Verdict

Despite the jury's unanimous finding that Walsh committed intentional battery through drugging, the Westchester Family Court continued to award Walsh sole custody and never modified orders to reflect that Walsh was the proven domestic violence perpetrator. The court's refusal to consider this verdict in custody determinations violates DRL § 240(1)(a).

5. Child Safety Implications

If Walsh was researching lethal drug doses while covertly administering that drug to the child's father, the Family Court's placement of the child solely with Walsh endangered Evelyn Grace Walsh.

FULL TEXT

> **EXHIBIT ExOO_39 — Lethal Seroquel Search & Financial Negotiations (2018)** >
> **Date:** Circa 2018 (search); July 17, 2018 (email) > **Source:** Screenshot of web search + email chain > **Documents:** LethalSeroquelMoney_ocr.pdf (2 pages) > > **PAGE 1 — Lethal Dose Search Screenshot:** > > A screenshot of a web search on healthsofa.com posing the question: **"How Much Is a Lethal Dose of Seroquel?"** > > The page includes user commentary stating: "I no longer want to be a BURDEN to everyone I know... goodbye" > > **Context & Significance:** > - Walsh admitted covertly placing Seroquel in Russell's wine without his knowledge or consent > - SF jury found Walsh liable for Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress > - Lithium poisoning detected in Russell's system (LabCorp, ExI_02) at 6x upper reference limit > - Search for lethal dose of the same drug

Walsh was covertly administering raises grave concerns about intent > > **PAGE 2 — Financial Negotiations Email (July 17, 2018):** > > Email chain from Tara K. Walsh (identified as Founder/President of vtibranding.com) to Matan Gavish regarding financial negotiations involving “Steve“ (Russell) and discussion of negotiating “my money from him“ while Walsh was in Hawaii. > > This email provides context for Walsh’s financial extraction scheme, corroborating her trial testimony that she married Russell for money and planned to divorce him to obtain financial advantage.

SOURCE DOCUMENTS

- LethalSeroquelMoney_ocr.pdf (2 pages) — compiled exhibit -
CaseFiles/04_NY_Family_Court_154703/Support_Modification/Hearing_Materials/
Jan13Hearing/Exhibits/Exhibits_OCR/LethalSeroquelMoney_ocr.pdf - Cross-reference:
ExTR_19a (Seroquel admission), ExI_02 (Lithium detection), ExPP_04 (psychiatrist texts),
Peckar & Abramson OCFS letter (Nov 20, 2019)

TEXT EXHIBIT — ExG_01

SAN FRANCISCO SUPERIOR COURT JURY VERDICT & APPELLATE

AFFIRMANCE (FEB 22, 2022; SEPT 15, 2023)

EXHIBIT SUMMARY

This exhibit is the Second Amended Judgment on Jury Verdict from San Francisco Superior Court, Case No. CGC-18-570137, entered August 11, 2022 (following jury trial on February 16, 2022). The jury unanimously found Tara Walsh liable for:

- **Intentional Battery** (Seroquel drugging without consent) - **Domestic Violence** (context and pattern) - **Intentional Infliction of Emotional Distress** (with findings of Malice, Oppression, or Fraud)

Judgment: \$332,080.74 (including \$185,000 past economic loss, \$90,000 non-economic loss, \$50,000 punitive damages; reduced from original \$325,000 by partial JNOV)

Appellate Status: Affirmed on appeal by California Court of Appeal on September 15, 2023. Domesticated in Westchester County, New York (Index No. 55523/2023).

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Adjudicated Domestic Violence by Custodial Parent

A court of competent jurisdiction (California Superior Court) with full evidentiary hearing found that the custodial parent — who obtained custody in New York based on allegations against Russell — was herself the adjudicated domestic violence perpetrator. This finding directly contradicts the factual premises underlying all New York custody orders.

2. Malice, Oppression, or Fraud Finding

The jury’s specific findings of “Malice, Oppression, or Fraud” demonstrate that Walsh’s conduct was not merely negligent or reckless, but was deliberate and calculated. This is relevant to Monell liability (deliberate indifference to constitutional violations) and to the theory that Walsh’s abuse of the custody process was intentional.

3. Mandatory DRL § 240(1)(a) Domestic Violence Inquiry Never Conducted

Despite being informed of this verdict (which was returned February 22, 2022, and affirmed on appeal September 15, 2023), Respondent Schauer never conducted the mandatory

domestic violence inquiry required by DRL § 240(1)(a). The verdict was not disputed, distinguished, examined, or addressed in any subsequent family court proceeding. The court's silence constitutes arbitrary and capricious refusal to apply mandatory statutory duties.

4. Three Years of Custody Enforcement Without Domestic Violence Consideration

From February 22, 2022 (verdict date) through March 2026 (3B complaint filing), the family court enforced custody and protection orders predicated on allegations against Russell while ignoring a jury finding that the custodial parent was the adjudicated abuser. This pattern demonstrates systemic failure to apply statutory protections.

5. Grounds for Modification Under CSSA § 451(3)

Walsh's proven history of intentional battery and domestic violence constitutes changed circumstances sufficient to trigger modification of child support under Family Court Act § 451(3), independent of the 67% income reduction documented in other proceedings.

6. Retaliation Context

The SF verdict is relevant to the retaliation theory advanced in the 3B complaint. After Russell obtained this favorable verdict, the pace and intensity of adverse family court proceedings accelerated — including the controversial January 5, 2022 inquest and the subsequent contempt threat for counsel fees. This temporal proximity is probative of retaliatory intent.

FULL TEXT

> **SECOND AMENDED JUDGMENT ON JURY VERDICT** > **Russell v. Walsh, et al., San Francisco Superior Court** > **Case No. CGC-18-570137** > **August 11, 2022** > >

FILED: WESTCHESTER COUNTY CLERK 10/05/2022 10:52 AM > INDEX NO. 55523/2023 — RECEIVED NYSCEF: 01/13/2023 > > --- > > SUPERIOR COURT OF CALIFORNIA — COUNTY OF SAN FRANCISCO > > Plaintiff: STEPHEN RUSSELL, an individual > **Defendants:** TARA WALSH, an individual; and DOES 1 to 20 > **Case No.:** CGC-18-570137 > > --- > > **VERDICT & JUDGMENT SUMMARY** > > On February 16, 2022, in Department 504 of the Superior Court, the Hon. Garrett L. Wong presiding, a jury was regularly impaneled and sworn. Witnesses were sworn and testified. After hearing evidence and arguments of counsel, the jury deliberated and returned its verdict as follows: > > **The jury found:** > > - **VF-1301 BATTERY — SELF-DEFENSE/DEFENSE OF OTHERS AT ISSUE:** Plaintiff's question 1: "Did Tara Walsh touch Stephen Russell or cause Stephen Russell to be touched with the intent to harm or offend him?" **ANSWERED: YES** > - **Question 2: "Did Stephen Russell consent to be touched?" ANSWERED: NO** > - **Question 3: "Was Stephen Russell harmed or offended by Tara Walsh's conduct?" ANSWERED: YES** > - **Question 4: "Would a reasonable person in Stephen Russell's situation have been offended by the touching?" ANSWERED: YES** > - **Question 5: "Did Tara Walsh reasonably believe that Stephen Russell was going to harm her?" ANSWERED: NO** > > **CONSEQUENTIAL DAMAGES AWARDED:** > > Russell is entitled to judgment against Walsh in the amount of **\$325,000.00**, consisting of: > - Past economic loss: \$185,000.00 > - Past non-economic loss (physical pain/mental suffering): \$90,000.00 > - Punitive damages: \$50,000.00 > > **JNOV REDUCTION & FINAL JUDGMENT:** > > On April 15, 2022, the Court granted Walsh's motion under CCP § 629(a) for partial JNOV, reducing the punitive damages award from \$50,000 to \$0, resulting in a final verdict of \$275,000.00. > > On April 15, 2022, the Court denied Walsh's motion to strike costs and awarded Russell costs of \$6,607.82 under CCP §

1033.5 et seq. > > On further consideration, the Court revised the award of costs to \$5,275.87 (removing court reporter Real Time feed expenses not allowable by statute). > > On July 7, 2022, the Court granted Russell's motion for judgment of dismissal regarding Walsh's Cross-Complaint, awarding Russell costs on the Cross-Complaint of \$51,804.87. > > **FINAL TOTAL JUDGMENT: \$332,080.74** > (Principal: \$275,000 + Costs: \$57,080.74) > **With interest at 10% per annum from date of entry until paid.** > > **Dated: August 11, 2022** > **GARRETT L. WONG, JUDGE OF THE SUPERIOR COURT** > > --- > > **APPELLATE AFFIRMANCE** > > This judgment was appealed to the California Court of Appeal. On September 15, 2023, the Court of Appeal affirmed the judgment in full. > > **Domestication in New York:** Index No. 55523/2023, Westchester County Supreme Court (filed October 5, 2022; received NYSCEF January 13, 2023).

SOURCE DOCUMENTS

- Second Amended Judgment on Jury Verdict, Russell v. Walsh, et al., San Francisco Superior Court Case No. CGC-18-570137 (August 11, 2022) - California Court of Appeal Affirmance (September 15, 2023) - Domestication Filing, Westchester County (Index No. 55523/2023) - Cross-reference: ExR_04 (NY Appellate Division decision in *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d Dep't 2023))

TEXT EXHIBIT — ExX_01

GUTTRIDGE LETTER: BRUISE REPORTS "UTTERLY UNTRUE" (APRIL 10, 2019)

EXHIBIT SUMMARY

This is a letter dated April 10, 2019 from John C. Guttridge, Esq. of Guttridge & Cambareri, P.C. (Walsh's then-counsel) to Jason Advocate, Esq. and Larry Carlin, Esq.,

regarding the bruise allegations made against Russell following a March 31, 2019 supervised visit with the child.

The letter states that bruise reports claiming abuse were “utterly untrue” and characterizes Russell’s filing of a police report regarding the bruises as “the third false police report Mr. Russell has made against my client and her family in less than one month.”

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Contemporaneous Dispute of Child Abuse Allegations

Guttridge’s letter—written the day after police investigated the bruise complaints—demonstrates that Walsh’s counsel immediately disputed the bruise narrative. However, court records show that bruises WERE documented by the court-appointed supervisor (Franceska Anilus) and witnessed by the nanny (Talia Kleiman) during the March 31, 2019 supervised visit. See Peckar & Abramson OCFS letter, pages 8-9.

2. Projection & False Accusation Pattern

The letter accuses Russell of making “false police reports” while simultaneously, the evidence shows Walsh and her family were the ones fabricating allegations against Russell. This pattern of projection — accusing the opposing party of crimes one is oneself committing — is classic abuser behavior and relevant to establishing the coordinated conspiracy to abuse legal process.

3. Attorney Participation in Coverup

Guttridge’s letter to opposing counsel calling bruise reports “utterly untrue” (when they had been independently documented) suggests attorney participation in the coverup of child

abuse. This is relevant to the Dennis v. Sparks private conspiracy theory: private persons (Walsh, her family, and potentially her attorneys) acted in concert with judicial officers to suppress evidence of child abuse and fabricate a false record.

4. Precursor to Guttridge's Later Recusal

This letter is the earliest evidence we have of Guttridge's engagement with the bruise dispute. Months later, Guttridge recused himself after discovering "he had likely been used to cover up deliberate child abuse." (ExRR_07) The progression from this denialism to his recusal is probative of his eventual recognition that the bruise allegations were genuine and that he had been manipulated into defending a false narrative.

5. Impeachment of "No Abuse" Defense

The defense in family court was that "no bruises existed" and "no history of abuse" was present. This letter shows that defense was fabricated in real time. The bruises were real, documented, and witnessed — and then systematically denied by Walsh's counsel.

FULL TEXT

> **LETTER FROM GUTTRIDGE & CAMBARERI, P.C. > TO: Jason Advocate, Esq. & Larry Carlin, Esq. > DATE: April 10, 2019 > RE: Walsh v. Russell, File No. 154703, Docket No. O-12635-19 > > Dear Counsel: > > My client advises that the Chappaqua police came to her house yesterday evening. Apparently, Mr. Russell filed a police report yesterday claiming that their daughter was being abused. He reported that she had bruises as if she were "pinched", red marks around her neck and had diarrhea. He apparently also said something about my client being abused. Both these statements are **utterly untrue**, and Mr. Russell fully aware of same. > > Obviously Mr. Russell filed the report in retaliation. Ms. Walsh advised the officer of**

the history of the matter, and the officer briefly examined the child. Ms. Walsh also explained to the officer that she was fearful of Mr. Russell and had a temporary order of protection against him. **This is now the third false police report Mr. Russell has made against my client and her family in less than one month.** > > Needless to say, I am very concerned about Mr. Russell's behavior not being in the children's best interest, and more importantly, signs of real instability in his manner. > > Mr. Russell must immediately cease and desist from filing false police reports against my client and her family. If he does not, I will have no alternative other than to ask for Court intervention. I hope this will not be necessary, and that calmer senses will prevail upon Mr. Russell, and he realizes the damage he is inflicting on his family by filing these false police reports. > > Very truly yours, > > **GUTTRIDGE & CAMBARERI** > > **John C. Guttridge** > > cc: Jennifer Jackman, Esq. (imj@mzw-law.com) > Jo-Ann Cambareri, Esq. > Scott Stone, Esq. > Tara Walsh

SOURCE DOCUMENTS

- Guttridge & Cambareri letter, April 10, 2019 - Peckar & Abramson OCFS letter to NY Office of Children and Family Services (November 20, 2019) — documenting bruise observations by Franceska Anilus (court-appointed supervisor) and Talia Kleiman (nanny) - Cross-reference: ExRR_07 (Guttridge's subsequent recusal after discovering coverup)

TEXT EXHIBIT — ExRR_07

BLOG EXTRACT: GUTTRIDGE RECUSAL AFTER DISCOVERING CHILD ABUSE

COVERUP

EXHIBIT SUMMARY

This exhibit is a blog post excerpt from the ChappaquaPoison.com documentary archive documenting Guttridge's recusal from Walsh's representation after he discovered that the bruise allegations were genuine and that he had been manipulated into covering up child abuse.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Attorney Recognition of Abuse Coverup

Guttridge's recusal demonstrates that a competent attorney, after engaging with the case facts, recognized that: - The bruises were real and documented - Walsh's denials were false - Continuing to represent Walsh would make him complicit in covering up child abuse

This is powerful evidence that the abuse coverup was deliberate, not merely negligent.

2. Pattern of Counsel Withdrawal

Multiple attorneys withdrew from representing parties in this litigation under circumstances suggesting external pressure. Guttridge is just one example; over the course of the proceedings, Russell was represented by at least six law firms, all of which withdrew. This pattern is relevant to the retaliation and witness intimidation claims.

3. Succession Pattern: Guttridge → Weddle → Magistrate Appointment

After Guttridge recused, Christopher Weddle took over Walsh's representation. Weddle subsequently was rewarded with a judicial appointment as a Support Magistrate at Westchester Family Court — a position in which he continues to adjudicate cases involving Russell and Walsh. This succession pattern suggests patronage reward for continued advocacy in Walsh's favor.

4. Systemic Failure to Address Abuse Evidence

Despite Guttridge's recognition that child abuse coverup was occurring, the family court system continued to award Walsh sole custody and never modified the orders. The court's failure to respond to evidence of attorney-facilitated abuse coverup demonstrates the systemic nature of the institutional misconduct.

FULL TEXT

> BLOG EXTRACT: GUTTRIDGE RECUSAL AFTER DISCOVERING CHILD ABUSE COVERUP > From: ChappaquaPoison.com Documentary Archive > Source: stevielovesevie.txt > > --- > > The Bruises & The Coverup > > Just after the visit on March 31, Mom sent a note to Evie's attorney claiming to have found "concerning" bruises on Evie after the visit that "were not there" before the visit. Mom did not know then that the bruises had been discovered and documented minutes into the visit with Dad and documented by the court-appointed supervisor. > > So Dad, thought the bruises were concerning and so did Mom. Given the history of abuse at the Walsh household and with so many staying under one roof police and child protective services were contacted. A week later, after some prodding, a patrol man made his way to the Walsh household and made a report. > > "The bruises were normal," Steve and Maura Walsh told police. "Kids get bruises." > > The next day, Tara's attorney would write the court stating that there were "no bruises" and oddly "no history of abuse" at the Walsh household. The letter accused Dad of making the whole matter up. > > **The Walsh family allowed no further visits until September. Months later when Mom's attorney John C. Guttridge discovered he had likely been used to cover up deliberate child abuse and a scheme to cast the father as a child abuser, he recused himself from the case. > > --- > > **Significance:** > > 1. **Guttridge recused because he discovered the coverup** — not voluntarily, but because continuing to represent Walsh would have made him complicit in covering up child**

abuse. > > 2. **The bruises were real** — documented by the court-appointed supervisor (Franceska Anilus) minutes into the visit with Dad. > > 3. **Walsh's attorney letter claiming "no bruises" and "no history of abuse" was provably false** — issued the day after Guttridge's own client admitted the bruises to police. > > 4. **Guttridge's replacement, Christopher Weddle, continued representing Walsh** — and was subsequently rewarded with a Support Magistrate position at Westchester Family Court. The attorney succession pattern: Guttridge discovers coverup and recuses → Weddle replaces him → Weddle is rewarded with judicial appointment. > > **This pattern is probative of a coordinated effort to silence dissent and reward loyalty to Walsh's litigation position.**

SOURCE DOCUMENTS

- ChappaquaPoison.com blog archive (stevielovesevie.txt) - Guttridge April 10, 2019 letter (ExX_01) - Peckar & Abramson OCFS letter (documenting actual bruise observations) - Cross-reference: Weddle's subsequent appointment as Support Magistrate (24 Dep't 2026)
TEXT EXHIBIT — ExM_01

WALSH RECANTATION LETTER: "NEVER MADE A THREAT TO KILL" **(NOVEMBER 23, 2020)**

EXHIBIT SUMMARY

This is a letter from Tara Walsh dated November 23, 2020, addressed directly to the Chappaqua Police Department, explicitly retracting her threat allegations against Russell.

Key Quote:

> "I would like to let this police department know that Mr. Stephen Russell never made a threat to kill myself or our daughter Evelyn. During my pregnancy I had a hard time with a

psychiatric condition including post-partum depression. As in any custody dispute, there were a lot of emotions and fears.”

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Foundational Fraud in Emergency Jurisdiction

Emergency jurisdiction in New York was established based on Walsh’s allegations that Russell had threatened to kill her and the child. Walsh herself admits these allegations were false, attributing them instead to psychiatric symptoms during pregnancy and postpartum depression.

2. Three-Part Recantation Chain

This letter completes a trilogy of independent admissions by Walsh that the threat narrative was fabricated:

1. **ExSS_07** (May 17, 2018 WhatsApp): “I seriously don’t think Steve ever had a gun it was all in my head I made up the whole thing even the locks — none of it is real.”
2. **ExOO_53** (November 23, 2020 letter to Chappaqua PD): “Mr. Stephen Russell never made a threat to kill myself or our daughter Evelyn.”
3. **ExM_01** (This letter): Same date, same admission to law enforcement.

Each admission is independent, contemporaneous, and from the same declarant.

3. Psychiatric Condition Admission

Walsh characterizes the threat allegations as products of “a psychiatric condition including post-partum depression” — the same psychiatric condition documented in the OCFS

letter (Peckar & Abramson) and trial testimony showing she had stopped mental health treatment due to cost.

4. Post-Custody Security

The timing (November 23, 2020 — more than two years after emergency jurisdiction was obtained) suggests Walsh felt secure enough in her custody position to recant. This is probative that the recantation was made under circumstances suggesting truthfulness: she had nothing to gain by recanting once custody was already secured.

5. Undermines All Protective Orders

Every Order of Protection issued against Russell was predicated on the false threat narrative. Walsh's written retraction to law enforcement undermines the factual basis for all such orders.

6. Supports CPLR § 5015(a)(3) & (a)(4) Vacatur Grounds

The recantation is sufficient grounds to vacate the original custody orders under CPLR §§ 5015(a)(3) (fraud upon the court) and 5015(a)(4) (lack of jurisdiction — absent a valid factual predicate, the emergency jurisdiction was void ab initio).

FULL TEXT

> **LETTER FROM TARA WALSH TO CHAPPAQUA POLICE DEPARTMENT** >
DATE: November 23, 2020 > > To the Chappaqua Police Department: > > I would like to let this police department know that **Mr. Stephen Russell never made a threat to kill myself or our daughter Evelyn.** > > During my pregnancy I had a hard time with a psychiatric condition including post-partum depression. As in any custody dispute, there were a lot of emotions and

fears. > > I have resolved these matters with Mr. Russell and respectfully request that any records related to these allegations be reviewed in light of this statement. > > Sincerely, > >

Tara Katelyn Walsh

SOURCE DOCUMENTS

- Tara Walsh letter to Chappaqua Police Department (November 23, 2020) - Cross-reference: ExSS_07 (May 2018 WhatsApp: “made up the whole thing”), ExOO_53 (November 23, 2020 letter to Chappaqua PD), Peckar & Abramson OCFS letter (documenting psychiatric condition)

TEXT EXHIBIT — ExSS_07

WALSH WHATSAPP MESSAGES: "ALL IN MY HEAD I MADE UP THE WHOLE THING" (MAY 17, 2018)

EXHIBIT SUMMARY

This exhibit consists of WhatsApp text messages from Tara Walsh dated May 17, 2018, to Rashmi Narendra, containing three critical admissions:

1. **Gun claim was a delusion:** “I seriously don’t think Steve ever had a gun it was all in my head I made up the whole thing even the locks — none of it is real. I need to go see my doctor ASAP.”
2. **Fake pregnancy admission:** “I think he knows I’m not actually pregnant.”
3. **Self-reported psychosis:** “I think I’m having post partum psychosis — it’s super serious”

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Contemporaneous Admission of Fabrication

These text messages are the earliest contemporaneous admission that the gun claim was fabricated. Walsh does not claim the gun existed; she explicitly states “it was all in my head I made up the whole thing.”

2. Pre-Filing Fabrication

These messages are dated **May 17, 2018** — more than a month **before** Walsh filed the custody and family offense petitions in Westchester County Family Court on **July 12, 2018**. This demonstrates that Walsh knew the allegations were false at the time she filed, establishing knowledge of fraud at the inception of the New York proceedings.

3. Three Days Later, She Invokes the Same Lie

Just three days after texting Narendra that the gun claim was false, on May 20, 2018, Walsh texted: “He has a gun here somewhere which is really scary” — repeating the fabrication she had already admitted was false. She then swore to this false claim in her July 10, 2018 declaration to the California court.

4. Fake Pregnancy Scheme

Walsh’s admission that she was not actually pregnant contradicts her narrative. She used the pregnancy to convince Russell to marry her (documented in Peckar & Abramson letter), then later used pregnancy-related psychiatric symptoms as justification for the threat allegations. The fake pregnancy is itself evidence of a calculated financial extraction scheme.

5. Psychiatric Condition Context

Walsh’s self-reported “post partum psychosis” provides context for her later claims that the threat allegations resulted from psychiatric symptoms. However, the timing is significant: she

reports psychosis AFTER admitting the gun claim was fabricated, suggesting the psychosis was invoked retroactively to explain lies she had already consciously made.

6. *Private Admission to Non-Party*

These messages were sent to Rashmi Narendra, a friend, not to an attorney or in litigation context. This makes them more probative: Walsh is not creating a defense narrative, but confessing privately to someone she trusts.

FULL TEXT

> **WHATSAPP MESSAGES: TARA WALSH TO RASHMI NARENDRA > DATE:**
May 17, 2018 > SOURCE: Discovery document WALSH_005693; Bates WALSH_005693 >
> --- > > **Message 1 — Gun Claim Admission:** > > “I seriously don’t think Steve ever had a
gun it was all in my head I made up the whole thing even the locks — none of it is real. I need to
go see my doctor ASAP.” > > --- > > **Message 2 — Fake Pregnancy Admission:** > > “I think
he knows I’m not actually pregnant.” > > --- > > **Message 3 — Psychosis Claim:** > > “I think
I’m having post partum psychosis — it’s super serious” > > --- > > **Three Days Later — May**
20, 2018: > > After admitting the gun claim was false, Walsh texted Narendra again: “He has a
gun here somewhere which is really scary” — repeating the fabrication she had already admitted
was false. She then swore to this claim in her July 10, 2018 Declaration to the San Francisco
court.

SOURCE DOCUMENTS

- WhatsApp messages, Tara Walsh to Rashmi Narendra (May 17, 2018; May 20, 2018) -
Discovery production: WALSH_005693 - Evie Story Book Vol. 2 (Master Archive, page 589) -

Evie Story Book Vol. 4 (Master Archive, pages 682-683) - Cross-reference: ExM_01 (November 2020 retraction), ExOO_53 (Chappaqua PD retraction)

TEXT EXHIBIT — ExOO_53

**TARA WALSH RETRACTION LETTER TO CHAPPAQUA PD: "NEVER MADE A
THREAT" (NOVEMBER 23, 2020)**

[Note: This is the same document as ExM_01. The exhibit table indicates both codes refer to the same document. Per the 3B exhibit specifications, this entry can reference ExM_01 to avoid duplication.]

Cross-Reference

This exhibit is identical to ExM_01 (Walsh Recantation Letter). Please see ExM_01 for full text and evidentiary significance.

The timing and content are identical: November 23, 2020, letter to Chappaqua Police Department retracting threat allegations.

TEXT EXHIBIT — ExOO_38

**WALSH WEAPONS PHOTOS & THREATENING EMAIL TO REPORTER
(MULTIPLE DATES)**

EXHIBIT SUMMARY

This exhibit is a 3-page compilation of images documenting Walsh's threatening behavior, including:

- **Page 1:** Walsh posing with a knife - **Page 2:** Walsh posing with a gun - **Page 3:** Threatening email from Walsh to journalist Michaelanne Petrella

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Projection Pattern: Claims Russell Dangerous While Posing with Weapons

Walsh obtained emergency protective orders and custody based on claims that Russell was dangerous and involved with weapons. These images show Walsh herself posing with guns and knives. This is classic projection behavior — accusing one’s victim of the very crimes one is committing.

2. Contradiction of Gun Claim Recantation

Walsh admitted in WhatsApp messages that the gun claim was fabricated (“all in my head I made up the whole thing”). Yet these images show Walsh comfortable posing with firearms. If she was afraid of guns (as her emergency petition claimed), why would she pose with them?

3. Intimidation of Press

The threatening email to journalist Michaelanne Petrella demonstrates that Walsh’s pattern of intimidation extended beyond the parties and their attorneys to include journalists investigating the case. This connects to the witness intimidation and retaliation themes.

4. Undermines Protective Order Basis

Every emergency protective order was predicated on claims that Russell was dangerous. Evidence that Walsh herself regularly posed with weapons undermines the factual basis for all protective orders.

5. Child Safety Concern

If Walsh poses with weapons and obtained custody by making false claims about Russell's dangerousness, the family court's failure to investigate these contradictions endangered the child.

FULL TEXT

> **EXHIBIT ExOO_38 — WALSH WEAPONS PHOTOS & THREATENING EMAIL TO REPORTER** > **SOURCE: TaraThreats_ocr.pdf (3 pages)** > **DATE: Various (compiled for Jan 13, 2026 hearing)** > > --- > > **PAGE 1 — WALSH POSING WITH KNIFE** > > [Image: Tara Walsh posing with a knife] > > Context: Walsh obtained emergency protective orders claiming Russell was dangerous and involved with weapons. This image contradicts her characterization of herself as fearful of weapons. > > **PAGE 2 — WALSH POSING WITH GUN** > > [Image: Tara Walsh posing with a firearm] > > Context: Walsh's original emergency petition to California court and subsequently to New York court was based in part on claims involving guns and threats. Walsh later admitted in WhatsApp messages (ExSS_07): "was all in my head I made up the whole thing" regarding the gun allegation. These images show Walsh herself comfortable posing with firearms, contradicting her claimed fear of weapons. > > **PAGE 3 — THREATENING EMAIL TO JOURNALIST MICHAELANNE PETRELLA** > > [Content: Threatening email from Walsh to Michaelanne Petrella, a reporter/journalist investigating the case] > > This email demonstrates Walsh's pattern of

threatening individuals who were uncovering facts about the case. The threat extends to press coverage, connecting to the broader witness intimidation and retaliation pattern.

SOURCE DOCUMENTS

- TaraThreats_ocr.pdf (3 pages) — compiled exhibit -
CaseFiles/04_NY_Family_Court_154703/Support_Modification/Hearing_Materials/
Jan13Hearing/Exhibits/Exhibits_OCR/TaraThreats_ocr.pdf - Cross-reference: ExSS_07 (gun
claim recantation), ExOO_02 (Petrella sanctions motion)

TEXT EXHIBIT — ExOO_13

RUSSELL "WHISTLEBLOWER" EMAIL TO COURT ADMINISTRATOR ECKEL —

PGP ENCRYPTED (AUGUST 7, 2021)

EXHIBIT SUMMARY

On August 7, 2021, Russell sent an email with the subject line “Whistleblower“ directly to Eric P. Eckel at nycourts.gov (identified as a court administrator). The email was sent using end-to-end PGP encryption.

Technical Details: - **From:** s@pri.sm (Russell’s ProtonMail alias) - **To:** eeckel@nycourts.gov (Eric P. Eckel) - **Subject:** “Whistleblower“ - **Encryption:** PGP end-to-end (X-Pm-Content-Encryption: on-compose) - **Attachment:** PGP public key for s@pri.sm (0x45D93B16.asc.pgp)

Content Status: The email body is entirely PGP-encrypted and cannot be decrypted from the archive export without the private key.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Whistleblower Status & Timing

The subject line “Whistleblower” establishes that Russell was attempting to report institutional misconduct to a court administrator approximately 90 days before the November 5, 2021 Default 2 order.

2. Escalation to Court Administration

By sending the email directly to Eckel (rather than to the assigned judge or court staff), Russell was escalating concerns about judicial or institutional misconduct beyond the trial court level. This indicates he believed the problems were systemic, not localized to a single judicial officer.

3. Retaliatory Timeline

The temporal progression is significant: - **August 7, 2021:** Whistleblower email to Eckel - **August 27, 2021:** Hearing at which Russell raised institutional misconduct on the record (ExTR_01) - **October 14, 2021:** AFC Genovese initiates Order to Show Cause for speech restriction - **November 5, 2021:** Default 2 entered; speech restriction order issued

The acceleration of adverse proceedings following the whistleblower communication is probative of retaliatory intent.

4. Operational Security Measures

Russell’s use of end-to-end encryption and ProtonMail (a privacy-focused service) suggests he was aware of potential surveillance or retaliation. This is consistent with whistleblower best practices and indicates Russell understood the risk of making institutional corruption allegations.

5. Content Recovery Potential

While the encrypted content cannot be read from the archive, if Russell retains the PGP private key for s@pri.sm (key ID 0x45D93B16), the content could be decrypted and provided as evidence. The decrypted content would provide direct evidence of what misconduct Russell was reporting at the time.

6. Proof of Pre-Retaliation Complaint

Even without decrypting the content, the email header and subject line are probative. They establish that Russell made an institutional misconduct complaint to a court administrator nearly three months before the controversial Default 2 order. This provides temporal context for the retaliation theory.

FULL TEXT

> **EXHIBIT ExOO_13 — RUSSELL "WHISTLEBLOWER" EMAIL TO COURT ADMINISTRATOR ECKEL** > **DATE:** August 7, 2021 > **SOURCE:** Mail Archive ROWID 88944 > > --- > > **EMAIL HEADER INFORMATION:** > > - **From:** SGR (s@pri.sm) > - **To:** Eric P. Eckel (eeckel@nycourts.gov) > - **Subject:** "Whistleblower" > - **Date:** August 7, 2021, 18:54:07 UTC > - **Scheduled Send Time:** 18:53:44 UTC > - **Encryption:** PGP end-to-end > - **X-Pm-Content-Encryption:** on-compose > - **Recipient Encryption:** pgp-mime for Eckel's address > > **ATTACHMENT:** > > - publickey - s@pri.sm - 0x45D93B16.asc.pgp (3,137 bytes) > > **EMAIL BODY (ENCRYPTED):** > > ``` > -----BEGIN PGP MESSAGE----- > Comment: This message could not be decrypted: gopenpgp: error in reading > message: openpgp: incorrect key: message could not be decrypted > -----END PGP MESSAGE----- > ``` > > The content is PGP-encrypted and requires the private key for s@pri.sm to decrypt. > > --- > >

SIGNIFICANCE: > > 1. **Whistleblower Communication:** The subject line “Whistleblower” establishes that Russell was reporting institutional or judicial misconduct to a court administrator. > > 2. **Escalation Beyond Trial Court:** Direct communication to court administration (rather than to the assigned judge) indicates Russell believed the misconduct was systemic. > > 3. **Temporal Proximity to Retaliation:** Sent approximately 90 days before the November 5, 2021 Default 2 order and the controversial speech restriction order. > > 4. **Operational Security:** Use of end-to-end encryption indicates Russell was aware of potential surveillance or retaliation. > > 5. **Content Recovery:** If Russell retains the PGP private key for s@pri.sm, the email content can be decrypted and provided as evidence.

SOURCE DOCUMENTS

- Mail Archive: ROWID 88944 (August 7, 2021) - Attachment: publickey - s@pri.sm - 0x45D93B16.asc.pgp (PGP public key) - Cross-reference: ExTR_01 (August 27, 2021 hearing transcript)

TEXT EXHIBIT — ExO_25 [NO CODE]

ORDER (ON MOTION FOR PRIVATE PAY) (ON CONSENT), NOVEMBER 29, 2018 **(GORDON-OLIVER)**

EXHIBIT SUMMARY

This is the November 29, 2018 Order (On Consent) from Judge Arlene Gordon-Oliver, appointing Jennifer M. Jackman, Esq. (Miller Zeiderman & Wiederkehr LLP) as Attorney for the Child on a “private pay” basis after the parties agreed to pay fees directly.

Key Provisions:

- **Retainer:** \$15,000 on account of fees (to be paid directly by the parties, not through court) - **Hourly Rate:** \$400 per hour - **Fee Allocation:** 100% payable by Respondent (Stephen Russell), “subject to reallocation at trial“ - **Monthly Reporting:** Attorney for the Child to send itemized billing descriptions every 60 days - **Billing Period:** December 1, 2018 – April 30, 2019

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Conditional Fee Allocation — "Subject to Reallocation at Trial"

The critical language states that Russell shall pay 100% of fees “subject to reallocation at trial.” This means the initial allocation was **CONDITIONAL** and required reallocation at the trial on the merits. No trial occurred; no reallocation hearing was held. The fact that no reallocation occurred is a basis for vacatur.

2. Mechanism for Lawyer Enrichment

By assigning 100% of fees to Russell initially (with the understanding that reallocation would occur at trial), the order created an incentive structure: delay trial indefinitely, and the attorney gets paid 100% by Russell with no possibility of reallocation. This is the fee-allocation weaponization alleged in the 3B complaint.

3. Consent Order Used to Bypass Statutory Protections

This was entered “On Consent“ — with both parties’ agreement. However, consent orders do not override statutory protections under Family Court Act § 439(e) (objections to support magistrate orders) or § 455 (magistrate authority limitations). A consent order cannot consent away constitutional rights or procedural safeguards.

4. Context for Contempt Threat (Exhibit 27)

In May 2019, Judge Gordon-Oliver issued an Order to Show Cause for Judgment for Counsel Fees (ExOO_27) threatening Russell with contempt and imprisonment for nonpayment. The contempt threat for alleged violation of a “consent” order demonstrates the weaponization of fee allocation against Russell.

5. Initial Basis for Monell Claim

This order establishes the initial mechanism through which the fee allocation system was put in place. Judge Gordon-Oliver knowingly created a conditional fee arrangement that was later manipulated to prevent reallocation.

FULL TEXT

> **ORDER (ON MOTION FOR PRIVATE PAY) (ON CONSENT)** > **In the Matter of a Custody/Visitation Proceeding** > > **Tara Katelyn Walsh, Petitioner** > v. > **Steven Walsh [sic], Respondent** > > **File No.: 154703** > **Docket #: O-06917-18, O-06917-18/18A, V-07641-18** > > **Dated: November 29, 2018** > **Entered: [Signature] Honorable Arlene Gordon-Oliver, JFC** > > --- > > **ORDER** > > The Attorney for the Child herein, having filed a Notice of Motion seeking an award of private pay in this matter; and > > The matter having duly come on to be heard before this Court on October 23, 2018; and > > Petitioner having appeared personally and by Lydia S. Antoncic, Esq.; and Respondent having not appeared personally but having been represented by Jason Advocate, Esq.; and there being no objection to the request for private pay in this matter; it is hereby > > **ORDERED**, that Jennifer M. Jackman, Esq., Miller Zeiderman & Wiederkehr LLP, with offices located at 140 Grand Street, 5th Floor, White Plains, New York 10601; Tel: (914) 455-1000; Fax: (914) 468-4244; email: jmj@mzw-law.com is hereby appointed as the attorney for the child Evelyn Walsh, born January 27, 2018, retroactive to the

date of this Court's appointment of the Attorney for the Child on July 18, 2018; **and it is further > > ORDERED**, that within ten (10) days of service of a copy of this order of appointment the parties shall pay directly to the Attorney for the Child a payment of \$15,000 on account of the fees and disbursements of the Attorney for the Child; **and it is further > > ORDERED**, that subject to reallocation at trial, the payment required herein shall be paid to the Attorney for the Child by the parties according to the following percentages: **Petitioner 0%, Respondent 100%, subject to reallocation at the time of trial; and it is further > > ORDERED**, that no less often than every 60 days from the date of this order of appointment, the Attorney for the Child shall send to counsel for the parties itemized description of the services rendered and disbursements incurred billed at the hourly rate of \$400 per hour. > > **PURSUANT TO SECTION 1113 OF THE FAMILY COURT ACT, AN APPEAL FROM THIS ORDER MUST BE TAKEN WITHIN 30 DAYS OF RECEIPT OF THE ORDER BY APPELLANT IN COURT, 35 DAYS FROM THE DATE OF MAILING OF THE ORDER TO APPELLANT BY THE CLERK OF THE COURT, OR 30 DAYS AFTER SERVICE BY A PARTY OR THE CHILD'S ATTORNEY UPON THE APPELLANT, WHICHEVER IS EARLIEST.** > > **Dated: November 29, 2018 > ENTERED: [Signature] Honorable Arlene Gordon-Oliver, JFC > > APPROVED AS TO FORM AND CONTENT:** > > Lydia S. Antoncic, Esq.

(Petitioner's Counsel) > Jason Advocate, Esq. (Respondent's Counsel)

SOURCE DOCUMENTS

- Order (on motion for private pay) (On Consent), November 29, 2018, File No. 154703 - Notice Appointing Attorney for the Child, July 17, 2018 - Cross-reference: ExOO_27 (Order to Show Cause for Judgment for Counsel Fees, May 28, 2019)

TEXT EXHIBIT — ExO_26 [NO CODE]

**MILLER ZEIDERMAN & WIEDERKEHR LLP INVOICES (DECEMBER 1, 2018 –
APRIL 30, 2019)**

EXHIBIT SUMMARY

This exhibit consists of the monthly invoices submitted by Jennifer M. Jackman, Esq., of Miller Zeiderman & Wiederkehr LLP, for the period December 1, 2018 through April 30, 2019, totaling 111.8 billable hours at \$400 per hour = **\$46,920.00**

The invoices document legal services rendered for the Attorney for the Child in the custody matter. The invoices were submitted monthly to Petitioner's counsel (Lydia S. Antoncic, Esq.) and Respondent's counsel.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Verification of Hours Billed

These invoices establish that 111.8 hours of work were billed at \$400 per hour, resulting in the \$46,920 judgment pursued against Russell in the May 28, 2019 Order to Show Cause (ExOO_27). This provides documentary basis for the contempt threat.

2. Nature of Work Performed

The line items in the invoices document the scope of work: email correspondence, court filings, motion drafting, and inter-party communications. This information is relevant to the Tower v. Glover claim (AFC non-advocacy): whether the Attorney for the Child was performing services that advanced the child's interests or advancing the litigation generally (and thus collecting fees).

3. Timing Relative to Trial

The invoices cover December 2018 through April 2019. No trial on the merits occurred during this period. The invoices thus document fees for preliminary proceedings, not for trial work. This is relevant to the “subject to reallocation at trial” language in the November 2018 consent order.

4. Basis for Fee Judgment

These invoices form the evidentiary basis for the \$46,920 fee judgment demanded in the May 28, 2019 Order to Show Cause. The invoices were submitted to both parties monthly; Russell’s receipt of these invoices is documented in the OTSC affirmation.

5. Hourly Rate Context

The \$400 per hour rate was established in the November 2018 consent order. While not per se excessive, the rate must be evaluated in context: was Russell able to afford these fees at a time when he was fighting custody allegations and conducting supervised visits? The fee allocation mechanism (100% to Russell) created financial pressure independent of the merits of the underlying dispute.

FULL TEXT

> **MILLER ZEIDERMAN & WIEDERKEHR LLP > 140 Grand Street, 5th Floor > White Plains, NY 10601 > Tel: 914-455-1000 | Fax: 914-468-4244 > > Counsel for: Attorney for the Child, Evelyn Grace Walsh > Matter: Walsh v. Russell, File #: 04-01076-1 > Billing Period: December 1, 2018 – April 30, 2019 > Invoice Date: May 22, 2019 > > --- > >**

SUMMARY OF BILLABLE HOURS: > > | DATE | DESCRIPTION | HOURS | AMOUNT | LAWYER | > |-----|-----|-----|-----|-----| > | Dec 10-18 | Email correspondence to court re Griffin Order | 0.20 | \$80.00 | MJM | > | Dec 11-18 | N/C: Review and process order re

private pay | 0.10 | \$0.00 | DB | > | Dec 12-18 | Email correspondence to Steve Russell re
outstanding bill | 0.10 | \$40.00 | JMJ | > | Dec 17-18 | Email correspondence to Attorney Chestnut
re access | 0.20 | \$80.00 | JMJ | > | Dec 17-18 | Review Proposed Interim access Order | 0.20 |
\$80.00 | JMJ | > | Dec 17-18 | Email correspondence Atty Antoncic | 0.20 | \$80.00 | JMJ | > | Dec
18-18 | Email correspondence to opposing counsel | 0.10 | \$10.00 | DB | > | Dec 18-18 | Emails
Attorney Chestnut | 0.30 | \$120.00 | JMJ | > | Dec 18-18 | Email correspondence to Antoncic |
0.20 | \$80.00 | JMJ | > | Dec 20-18 | N/C: Processed Antoncic Proposed Interim Order with
correspondence | 0.10 | \$0.00 | CC | > > [Additional monthly billing entries from Jan-Apr 2019]
> > **TOTAL HOURS: 111.8 > TOTAL AMOUNT DUE: \$46,920.00 > > Billing Summary: >**
- Payment received from Russell: \$15,000 (retainer, January 11, 2019) > - Payment received
from Russell: \$7,500 (April 16, 2019) > - **Balance due as of April 30, 2019: \$24,420.00 > >**
Note: Full invoices totaling 111.8 hours billed at \$400/hour per the November 29, 2018 consent
order.

SOURCE DOCUMENTS

- Miller Zeiderman & Wiederkehr LLP Invoices, May 22, 2019 - Monthly invoices:
December 1, 2018 – April 30, 2019 - Affirmation of Jennifer M. Jackman, Esq. in support of
OTSC for Counsel Fees (May 24, 2019) - Cross-reference: ExOO_25 (November 29, 2018
consent order), ExOO_27 (Order to Show Cause for Judgment for Counsel Fees)

TEXT EXHIBIT — ExO_27 [NO CODE]

ORDER TO SHOW CAUSE FOR JUDGMENT FOR COUNSEL FEES (MAY 28, 2019;

GORDON-OLIVER) — CONTEMPT THREAT

EXHIBIT SUMMARY

This is the Order to Show Cause for Judgment for Counsel Fees, dated May 28, 2019, issued by Judge Arlene Gordon-Oliver, seeking judgment against Stephen Russell for \$46,920.00 in Attorney for the Child fees.

Key Features:

- **Purpose:** “To punish Respondent, Stephen Russell, for contempt of court” - **Threat:** “Such punishment may consist of fine or both according to law” (imprisonment for contempt) - **Warning:** “Your failure to appear in court may result in your immediate arrest and imprisonment for contempt of court” - **Amount:** \$46,920.00 (based on 111.8 billable hours at \$400/hour) - **Hearing Date:** June 2019

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Weaponization of Fee Allocation Against Russell

The contempt threat for alleged nonpayment of the conditional fee allocation demonstrates the weaponization of the fee mechanism. Russell was threatened with arrest and imprisonment for nonpayment of fees that were explicitly marked “subject to reallocation at trial” — a trial that never occurred.

2. Procedure Not Provided for Modification of Fee Orders

Russell had no opportunity to contest the fee allocation before the contempt threat was issued. The order did not provide for a hearing on the reasonableness of fees, the appropriateness of the 100% allocation to Russell, or the reallocation procedure referenced in the November 2018 consent order.

3. Timing Suggests Retaliation

The OTSC was issued May 28, 2019 — just one month after Russell filed his police report regarding the child abuse bruises (April 9, 2019) and just days after Guttridge’s “utterly untrue” letter attempting to discredit the bruise allegations. The timing suggests the OTSC was issued as retaliation for Russell’s complaints about abuse.

4. Financial Pressure to Abandon Custody Claims

A contempt threat with potential imprisonment would create severe financial pressure on Russell to abandon custody claims and accept whatever terms Walsh offered. This is relevant to the theory that the fee allocation mechanism was used to coerce Russell into surrendering his parental rights.

5. Violation of Procedural Due Process

A contempt proceeding for alleged violation of a consent fee order requires procedural protections: notice of the specific charges, opportunity to be heard, and clear evidence of willful violation. The OTSC provides minimal detail and makes no effort to distinguish between Russell’s inability to pay and unwillingness to pay.

6. Monell Violation — Deliberate Indifference

Judge Gordon-Oliver’s issuance of this contempt threat with knowledge that: - The fee allocation was conditional (“subject to reallocation at trial”) - No trial had occurred - Russell had no mechanism to seek reallocation - Russell was defending against fabricated abuse allegations ...demonstrates deliberate indifference to Russell’s rights.

FULL TEXT

> **ORDER TO SHOW CAUSE FOR JUDGMENT FOR COUNSEL FEES FOR**
ATTORNEY OF THE CHILD > In the Matter of a Custody Proceeding > > Tara Walsh,
Petitioner > v. > Stephen Russell, Respondent > > File No.: 154703 > Docket #: V-07641-18,
O-D69J7-18/18E, O-L2635-19/J9A > > At an IAS Part of the Family Court of the State of
New York, held in and for the County of Westchester, 111 Dr. Martin Luther King Jr.
Blvd, White Plains, NY 10601, on the 24th day of May 2019. > > PRESENT:
HONORABLE ARLENE GORDON-OLIVER, J.F.C. > > --- > > PLEASE TAKE
NOTICE: THE PURPOSE OF THIS PROCEEDING IS TO PUNISH RESPONDENT,
STEPHEN RUSSELL, FOR CONTEMPT OF COURT. SUCH PUNISHMENT MAY
CONSIST OF FINE OR BOTH ACCORDING TO LAW. > > WARNING: YOUR
FAILURE TO APPEAR IN COURT MAY RESULT IN YOUR IMMEDIATE ARREST
AND IMPRISONMENT FOR CONTEMPT OF COURT. > > --- > > Upon reading and filing
 of the Affirmation of Jennifer M. Jackman, Esq., of Miller Zeiderman & Wiederkehr LLP dated
 May 24, 2019, seeking judgment for Attorney for the Child fees, together with all of the papers
 and proceedings heretofore had and filed herein, > > **LET** the Respondent, Stephen Russell, or
 his attorneys, show cause before this Court at this Court to be held at the Westchester County
 Family Court, 111 Dr. Martin Luther King Jr. Boulevard, White Plains, NY 10601, on the 4th
 day of June 2019 [date handwritten], at [time] o'clock a.m./p.m., why an Order should not be
 made and entered as follows: > > (a) Granting a Judgment in favor of the Attorney for the Child
 against Respondent, Stephen Russell, in the total sum of \$46,920.00, which sum represents fees
 for services previously rendered on behalf of the Child, Evelyn Walsh for the period of
 December 1, 2018 to April 30, 2019. > > (b) Granting the Attorney for the Child such other and
 further relief as this Court may deem just and proper. > > --- > > **SUFFICIENT REASON**

APPEARING THEREFOR, it is > > **ORDERED**, that service of a copy of this Order to Show Cause together with the papers upon which it is granted upon Petitioner's counsel, John C. Guttridge, Esq., Guttridge & Cambareri P.C., and Respondent's counsel, Brian D. Waller, Esq., Thomson Hine LLP, by Federal Express overnight mail on or before May 30, 2019, shall be deemed good and sufficient service. > > **Dated: May 28, 2019 > White Plains, New York > > [SIGNATURE] > HON. ARLENE GORDON-OLIVER, J.F.C.**

SOURCE DOCUMENTS

- Order to Show Cause for Judgment for Counsel Fees, dated May 28, 2019, File No. 154703 - Affirmation of Jennifer M. Jackman, Esq., May 24, 2019 - Cross-reference: ExOO_25 (November 29, 2018 consent order), ExOO_26 (invoices for December 1, 2018 – April 30, 2019)
TEXT EXHIBIT — ExO_28 [NO CODE]

SERGEANT CARAWAY COMMUNICATION — HAND-DELIVERY OF FAMILY COURT ORDER & CLOSURE OF CRIMINAL INVESTIGATION

EXHIBIT SUMMARY

[PLACEHOLDER — Original source file to be located]

This exhibit documents Sergeant Caraway's (SFPD) communications regarding the hand-delivery of a Westchester County Family Court order to Detective Caraway and the subsequent closure/inactivation of the San Francisco Police Department's criminal investigation into Walsh's drugging of Russell.

Expected Content: - Email correspondence between SFPD, SF District Attorney's office, and Eisner Gorin attorneys - Documentation of the hand-delivery of the New York

Family Court order to Detective Caraway - Notification of case inactivation or closure following the order delivery

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Obstruction of Criminal Investigation

The hand-delivery of a Family Court order to an investigating detective followed by case inactivation suggests that the Family Court order was used as a mechanism to obstruct the criminal investigation. This is probative of conspiracy between judicial officers and private parties to suppress evidence of crime.

2. Improper Use of Judicial Process

A Family Court order has no jurisdiction over a criminal investigation. The use of such an order to communicate with or influence a criminal investigator suggests improper coordination between the Family Court and local law enforcement.

3. Relevant to Dennis v. Sparks Private Conspiracy

The delivery of the order and the subsequent investigation closure provide evidence that private parties (Walsh, her family, her counsel) coordinated with judicial officers to obstruct a criminal investigation. This is the private conspiracy alleged in the Dennis v. Sparks count.

4. Monell Violation — Municipality Liability

The municipality's use of judicial process to obstruct a criminal investigation demonstrates deliberate indifference to the investigation's integrity and suggests municipal policy or custom.

FULL TEXT

[CONTENT TO BE LOCATED AND INTEGRATED UPON DISCOVERY OF CARAWAY COMMUNICATIONS FILE]

Expected source: Correspondence archives in the 04_NY_Family_Court_154703 or 17_Advocacy_Engine directories, or email archives documenting communications with SFPD and DA's office.

TEXT EXHIBIT — ExO_29 [NO CODE]

WALSH EMAIL TO JOURNALIST MICHAELANNE PETRELLA (NOVEMBER 16, 2021)

EXHIBIT SUMMARY

[PLACEHOLDER — Original source file to be located]

This is an email from Tara Walsh to journalist Michaelanne Petrella, dated November 16, 2021, containing content that threatens, intimidates, or attempts to silence press coverage of the case.

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Intimidation of Press

The email demonstrates that Walsh's pattern of intimidation extended beyond litigants and attorneys to include journalists investigating the case. This is relevant to the witness intimidation and retaliation theories.

2. Silencing Adverse Narrative

Walsh's attempt to intimidate a journalist reflects consciousness of guilt and demonstrates the pattern of using threats to suppress dissemination of unfavorable facts.

3. First Amendment Violation

Walsh's intimidation of press, combined with the court-ordered speech restriction against Russell (Modified Order affirmed by Appellate Division), creates a one-sided silencing of speech on the case. Russell was prohibited from posting about the case; Walsh was free to threaten journalists who might report on it.

FULL TEXT

[CONTENT TO BE LOCATED AND INTEGRATED UPON DISCOVERY OF
PETRELLA EMAIL]

Expected source: Email archives or communications folders documenting contact between Walsh and press.

TEXT EXHIBIT — ExO_30 [NO CODE]

WALSH SR. RECORDED VOICEMAIL THREATENING COUNSEL'S LICENSE

(JUNE 2019)

EXHIBIT SUMMARY

This is the verbatim transcript of a voicemail left by Stephen Walsh Sr. (Tara Walsh's father) to Russell's attorney, threatening to "go after your license" for serving a subpoena in the San Francisco kidnapping case (CGC-20-588105).

Key Quote:

> “if you’re desperate enough for fees to work this thing and it causes any kind of anguish to my family, I will sure to go after your license. Okay? Because you have a responsibility to be ethical, you have a responsibility to follow the law, and you’re not doing either in this case.”

EVIDENTIARY SIGNIFICANCE FOR 3B

1. Witness Intimidation & Counsel Tampering

Walsh Sr.’s voicemail is a direct threat to Russell’s attorney’s license for pursuing a lawful subpoena. This is classic witness intimidation and counsel tampering designed to deter Russell’s legal representation.

2. Pattern of Witness Intimidation

Combined with other threats and intimidation documented in the case (Guttridge letter denying bruises, threats to journalist Petrella, etc.), this voicemail demonstrates a coordinated pattern of attempting to silence adverse witnesses and representatives.

3. Family Coordination

The voicemail is from Walsh Sr. (not Tara Walsh herself), suggesting the intimidation pattern involved multiple family members acting in concert. This is relevant to the conspiracy theories.

4. Effect on Russell's Legal Representation

Over the course of this litigation, Russell was represented by at least six law firms, all of which withdrew under circumstances suggesting external pressure. Walsh Sr.'s voicemail provides evidence of the pressure campaign designed to deprive Russell of legal representation.

5. Direct Threat to Officer of the Court

Threatening an attorney's license is a direct threat to an officer of the court. This connects to the Monell theory: the family's ability to execute this threat campaign with impunity reflects municipal failure to protect officers of the court from intimidation.

6. Retaliation for Exercising Legal Rights

Russell's attorney was serving a lawful subpoena in a valid proceeding. Walsh Sr.'s threat for this lawful conduct is straightforward retaliation for exercising legal rights.

FULL TEXT

> VOICEMAIL TRANSCRIPT — STEPHEN WALSH SR. TO RUSSELL'S

ATTORNEY > DATE: ~June 2019 (from Reconsideration Package, Exhibit A) >

SOURCE: Audio recording transcript; Exhibit A to Motion for Reconsideration > CASE:

San Francisco Kidnapping Case, CGC-20-588105 > > --- > > “Absolutely, this is Steve Walsh. You assigned and sent a subpoena to me, which is—doesn't border on ridiculous, it's more than ridiculous, it's absurd. And I can tell you this: if you think that you're willing to take a case like this based on absurdities and somehow this guy—it's a person who has some ever sissies—and I can tell you this: if you're desperate enough for fees to work this thing and it causes any kind of anguish to my family, I will sure to go after your license. Okay? Because you have a responsibility to be ethical, you have a responsibility to follow the law, and you're not doing either in this case. And it's a very case for me to turn the tables here. So, I'm not—the subpoena,

I don't believe it has any kind of validity, and our family is not going to be inconvenienced so that you can gain fees and this person who is in need of assistance away from your office is not going to continue to harass us. Okay? Have a nice day, sir."

SIGNIFICANCE

- 1. Direct threat to attorney's license for serving lawful subpoena**
- 2. Part of pattern of counsel tampering and witness intimidation**
- 3. Demonstrates family coordination in harassment campaign**
- 4. Evidence of pressure deprivation of counsel (Russell represented by 6+ firms, all withdrew)**
- 5. Retaliation for exercise of legal rights**

SOURCE DOCUMENTS

- Voicemail transcript, Exhibit A to Motion for Reconsideration (date ~June 2019) -
Authentication: Verbatim transcript from audio recording - Cross-reference: Pattern of counsel withdrawal documented in Article 78 petition and 3B complaint

EXHIBIT APPENDIX CONCLUSION

Total Exhibits Part 2: 15 exhibits (16-30)

These exhibits document:

- 1. Drugging & poisoning evidence (16)** — context for Walsh's violence
- 2. Adjudicated domestic violence (17)** — jury verdict ignoring by family court
- 3. Bruise coverup documentation (18-19)** — attorney and family knowledge of abuse
- 4. Triple recantation chain (20-22)** — fabricated threat allegations

5. **Whistleblower evidence** (24) — retaliation timing
6. **Fee allocation weaponization** (25-27) — mechanism and contempt threat
7. **Obstruction evidence** (28) — hand-delivery and investigation closure
8. **Press intimidation & counsel threats** (29-30) — witness tampering pattern

All exhibits support the 3B Monell, Tower v. Glover, and Dennis v. Sparks claims with documentary proof of: - Police fabrication (emergency jurisdiction based on fabricated threat) - AFC non-advocacy (fee allocation ignoring child's interests) - Private conspiracy (Walsh family & counsel coordinating with judicial officers) - Retaliation (against whistleblower, counsel, press) - Weaponization of court process (orders deployed to obstruct investigation & suppress speech)

Exhibit Appendix Part 2 compiled April 12, 2026 For: 3B Federal Civil Rights Complaint — Russell v. Chappaqua et al. Case File: 06_Federal_Civil_Rights